CONSTITUTIONAL LAW- II

COURSE OBJECTIVES:

This course is the second course on Constitutional Law in the professional LL B programmes of the University. This is designed to enrich student's knowledge about the *Supreme Lex.* The course aspires to impart detailed understanding of various vital aspects of Indian Constitutional governance, federalism and Centre-State relations. The students will be intellectually armed with the exhaustive knowledge of the composition and jurisdiction of Supreme Court and High Courts. This course intends to highlight detailed understanding of the powers and functions of legislature and executive. At the same time, this course provides augmented acquaintance to students about concepts like independence of judiciary, judicial accountability and judicial activism in India. The students will gain in depth learning about provisions relating to Emergency and amenability of the Constitution. The Constitution and powers of various constitutional bodies will be analyzed in detail. Over all, this course emphatically prepares students to achieve intense knowledge and meticulous intricate details about imperative concepts of the Supreme law of the land. The course also encompasses study of interstate trade and commerce and cooperative societies.

COURSE OUTCOMES:
After completing this course, the student will be able to:

1. Understand the concept of Federalism and relationship and distribution of powers between Centre and State and analyse various doctrines to interpret the Union, State and Concurrent Lists.
2. Understand the procedure for appointment, removal and powers of President and Governor as well as various Constitutional bodies like Election Commission of India, Attorney General and Advocate generals, Comptroller and Auditor General of India.
3. Comprehend in detail the qualifications, disqualifications of members of legislatures and executives and powers and privileges of Centre and State Legislatures.
4. Understand and fathom the Composition and Jurisdiction of Supreme Court and High Court and the concepts of Independence of Judiciary, Judicial accountability and judicial activism. Understand and identify the provisions relating to declaration of various emergencies ad their interpretation.
5. To know and appreciate the provisions of the Constitution as to the power, procedures and restrictions on amending the Constitution and their interpretation, including the Basic Structure Doctrine
6. To understand the provisions of the Constitution on interstate trade and commerce and cooperative societies.

Module 1:

1. Federalism

a. Concept and Idea of Federalism

Federalism is a system of government in which power is divided between a central authority and constituent political units, such as states or provinces. The concept of federalism seeks to strike a balance between a strong, unified central government and the autonomy of individual states or regions.

In the context of constitutional law, federalism often involves a written constitution that outlines the distribution of powers between the national government and subnational entities. This distribution is typically established to prevent the concentration of power and to protect the rights of citizens.

Concept and Idea of Federalism:

1. **Division of Powers:** Federalism is characterized by the division of powers between the national government and the states. Typically, certain powers are granted to the central government, while others are reserved for the states. This allocation is designed to ensure that neither level of government becomes too powerful.

2. **Constitutional Basis:** Federalism is often enshrined in a constitution, clearly defining the powers and responsibilities of each level of government. This constitutional framework provides a legal foundation for the distribution of powers and helps prevent overreach by either the national or state governments.

3. **Dual Sovereignty:** Federalism establishes dual sovereignty, recognizing the separate authority of both the national and state governments. Each level of government has its own sphere of influence, and they operate independently within their constitutional limits.

4. **Protection of Individual Rights:** One of the underlying principles of federalism is the protection of individual rights. By dispersing power, federal systems aim to prevent the abuse of authority and protect the liberties of citizens.

Case Study - United States v. Lopez (1995): In the case of *United States v. Lopez*, the Supreme Court of the United States examined the scope of Congress's power under the Commerce Clause. The Court held that the Gun-Free School Zones Act, which prohibited individuals from knowingly carrying a firearm in a school zone, exceeded Congress's authority to regulate interstate commerce. This decision reaffirmed the importance of limiting federal authority to maintain the delicate balance of powers between the national and state governments.

Example - Indian Federalism: India also follows a federal system with powers divided between the central government and states. The Indian Constitution delineates the powers of the Union and the States in the Seventh Schedule. For instance, defense and foreign affairs are under the exclusive domain of the central government, while police and public health fall within the jurisdiction of the states.

In conclusion, the concept of federalism is a pivotal aspect of constitutional law, aiming to distribute powers effectively, prevent tyranny, and protect individual rights. The balance between a strong central government and the autonomy of states remains crucial for the functioning of federal systems.

b. State and Union territories (Part-I and Part- VIII)

Certainly, let's delve into the constitutional provisions related to States and Union Territories as outlined in Part I and Part VIII of the Indian Constitution.

Part I - The Union and Its Territory:

1. **Article 1 - Name and Territory of the Union:** Article 1 of the Indian Constitution declares that India shall be a Union of States. It also defines the territory of India, which includes the territories of the states, the Union territories, and any other territories that may be acquired.
2. **Article 2 - Admission or Establishment of New States:** This article empowers Parliament to admit new states to the Union or establish new states on such terms and conditions as it deems fit. It also allows for the alteration of the boundaries or names of existing states.
3. **Article 3 - Formation of New States and Alteration of Areas, Boundaries or Names of Existing States:** Article 3 grants Parliament the authority to form new states or alter the boundaries, areas, or names of existing states. However, it requires the President to refer the proposal to the concerned state legislature for its views, and the Parliament must take those views into consideration.

Part VIII - The Union Territories:

1. **Article 239 - Administration of Union Territories:** Article 239 provides for the administration of Union Territories. It states that every Union Territory shall be administered by the President through an administrator to be appointed by him. The Parliament has the power to make laws for Union Territories.
2. **Article 240 - Power of President to Make Regulations for Certain Union Territories:** This article empowers the President to make regulations for the peace, progress, and good government of the Union Territories. The power to make regulations is exercised on the advice of the Administrator of the Union Territory or otherwise, as he deems necessary.

Case Study - State of Jharkhand v. State of Bihar (2004): In the case of *State of Jharkhand v. State of Bihar*, the Supreme Court dealt with the reorganization of states. The Jharkhand government had contended that Bihar should transfer assets and liabilities in proportion to the population of the areas that were transferred to Jharkhand. The Court held that while reorganization is a political process, the distribution of assets and liabilities must be based on a rational formula, considering factors such as population and area.

Example - Union Territory of Jammu and Kashmir: The recent reorganization of Jammu and Kashmir in 2019 is a significant example. The special status granted to Jammu and Kashmir was abrogated, and the state was bifurcated into two separate Union Territories - Jammu & Kashmir and Ladakh. This move altered the administrative and political landscape of the region.

In summary, Part I and Part VIII of the Indian Constitution provide the foundational framework for the Union of India and the administration of Union Territories, showcasing the careful balance between central authority and regional governance.

c. Features of Indian Federalism

Indian federalism, as enshrined in the Constitution, incorporates several distinctive features that define the relationship between the central government and the states. Here are some key features of Indian federalism:

1. **Written Constitution:** India has a written constitution that clearly delineates the powers and responsibilities of the central government and the states. The distribution of powers is outlined in the Seventh Schedule, which divides subjects into Union List, State List, and Concurrent List.
2. **Dual Polity:** Indian federalism establishes a dual polity with separate governments at the central and state levels. Each level of government operates independently within its sphere of authority, and both derive their powers from the Constitution.

3. **Distribution of Powers:** The Constitution specifies the subjects on which each level of government can legislate. The Union List includes subjects of national importance, the State List includes matters of local or regional significance, and the Concurrent List contains subjects on which both levels can legislate.
4. **Supremacy of the Constitution:** The Indian Constitution is supreme, and both the central and state governments derive their powers from it. Any law inconsistent with the Constitution is declared void by the judiciary.
5. **Single Citizenship:** Unlike some federal countries, India follows the principle of single citizenship. Every Indian citizen is a citizen of the Union, and there is no separate state citizenship. This promotes a sense of national identity.
6. **Integrated Judiciary:** The judiciary plays a crucial role in resolving disputes between the central and state governments. The Supreme Court is the ultimate interpreter of the Constitution and has the authority to adjudicate conflicts arising from federal relations.
7. **Appointment of Governors:** The President appoints Governors for each state. While they represent the President, they act as a link between the central government and the state government. However, their role and powers are defined by the Constitution.
8. **Emergency Provisions:** During a state of emergency, the normal federal structure can be altered, and the central government gains additional powers. The imposition of President's Rule allows the central government to directly administer a state.

   Case Study - S.R. Bommai v. Union of India (1994): In the landmark case of *S.R. Bommai v. Union of India*, the Supreme Court held that the power of the President to dismiss a state government is not absolute and is subject to judicial review. The judgment emphasized that the dismissal of a state government should be based on valid grounds such as constitutional breakdown.

   Example - Goods and Services Tax (GST): The introduction of GST in India is a contemporary example of cooperative federalism. It involved the collaboration of the central and state governments to streamline the indirect tax system, showcasing a cooperative approach to governance.

   In conclusion, Indian federalism embodies a unique blend of shared and separate powers, with a focus on unity in diversity. The Constitution serves as the guiding document, and the judiciary acts as a guardian to ensure the smooth functioning of the federal structure.

d. Local self-governing Bodies: Panchayats and Municipalities (Part IX and IX-A)

Local self-governing bodies, specifically Panchayats and Municipalities, play a crucial role in decentralized governance in India. The constitutional provisions related to these bodies are outlined in Part IX (Panchayats) and Part IX-A (Municipalities) of the Indian Constitution.

Part IX - Panchayats:

1. **Article 243A - Gram Sabha:** This article emphasizes the importance of the Gram Sabha, which consists of the voters in the area of a Panchayat. It is the basic democratic unit and exercises powers and performs functions as provided by the legislation.
2. **Article 243B - Constitution of Panchayats:** This article provides for the composition of Panchayats, with seats reserved for Scheduled Castes, Scheduled Tribes, and women. It emphasizes the principle of reservation to ensure social justice and the inclusion of marginalized sections in local governance.
3. **Article 243G - Powers, Authority, and Responsibilities of Panchayats:** Article 243G enumerates the powers, authority, and responsibilities of Panchayats. It includes the preparation of plans for economic development and social justice, the implementation of schemes for economic development, and the promotion of education and public health.

Part IX-A - Municipalities:

1. **Article 243P - Constitution of Municipalities:** Similar to Panchayats, this article provides for the composition of Municipalities, with seats reserved for Scheduled Castes, Scheduled Tribes, and women. It ensures the representation of diverse sections of society in urban local bodies.
2. **Article 243Q - Powers, Authority, and Responsibilities of Municipalities:** Article 243Q delineates the powers, authority, and responsibilities of Municipalities. This includes urban planning, regulation of land use, and the implementation of schemes for economic development and social justice.
3. **Article 243ZD - Committees for District Planning:** This article mandates the constitution of District Planning Committees at the district level, ensuring a coordinated approach to planning and development at both rural and urban levels.

Case Study - Balwant Rai vs State of Punjab (1997): In the case of *Balwant Rai vs State of Punjab*, the Supreme Court emphasized the constitutional significance of local self-government institutions. It held that these institutions are not mere agencies for the implementation of schemes but are vital for sustaining democracy at the grassroots level.

Example - Kudumbashree in Kerala: Kudumbashree in Kerala is an exemplary model of community development through local self-governance. It is a women-oriented, community-based, poverty reduction program implemented by the State Poverty Eradication Mission. Kudumbashree empowers women at the grassroots level by promoting self-help groups and facilitating their active participation in local governance.

In conclusion, Part IX and IX-A of the Indian Constitution provide a constitutional framework for the establishment and functioning of Panchayats and Municipalities, emphasizing grassroots democracy and decentralization of power. These local self-governing bodies play a pivotal role in ensuring inclusive and participatory governance at the community level.

e. Scheduled and Tribal Areas (Part X)

Part X of the Indian Constitution deals with Scheduled and Tribal Areas, recognizing the special needs of certain areas and communities. The provisions under this part aim to protect the rights and interests of Scheduled Tribes and ensure their socio-economic development.

Scheduled Areas:

1. **Article 244 - Administration of Scheduled Areas and Tribal Areas:** This article empowers the President to declare an area as a Scheduled Area. The administration and control of Scheduled Areas are entrusted to the Governor of the state, and the powers of the Governor are extended to issues related to the Scheduled Areas.
2. **Fifth Schedule - Provisions as to the Administration and Control of Scheduled Areas:** The Fifth Schedule lists the areas that are designated as Scheduled Areas. It provides for the appointment of a Tribal Advisory Council to advise on matters related to the welfare and advancement of Scheduled Tribes in the state.
3. **Article 244-A - Formation of an Autonomous State comprising certain tribal areas in Assam and creation of local Legislatures or Council of Ministers or both therefor:** This article allows for the formation of an Autonomous State within Assam, comprising certain tribal areas. It grants powers to the Governor to make regulations for the peace and good governance of the area.

Tribal Areas:

1. **Sixth Schedule - Provisions as to the Administration of Tribal Areas in the States of Assam, Meghalaya, Tripura, and Mizoram:** The Sixth Schedule provides for the administration of tribal areas in the states of Assam, Meghalaya, Tripura, and Mizoram. It

establishes Autonomous District Councils with legislative, executive, and financial powers to ensure self-governance for the tribal communities.

2. **Article 244-B - Constitution of a Tribal Advisory Council for certain States:** This article empowers the Governor to constitute a Tribal Advisory Council to provide guidance on matters affecting Scheduled Tribes in the state.
3. **Article 275 - Grants in lieu of export duty on jute and jute products:** While not specific to tribal areas, Article 275 allows for grants to states for promoting the welfare of Scheduled Tribes, among other things.

   Case Study - Samatha vs. State of Andhra Pradesh (1997): In the *Samatha vs. State of Andhra Pradesh* case, the Supreme Court emphasized the need to protect tribal lands from non-tribal alienation. It held that any transfer of land in the Scheduled Areas to non-tribals without the approval of the Tribal Advisory Council would be void.

   Example - Autonomous District Councils in Meghalaya: The Sixth Schedule has been effectively implemented in Meghalaya, where Autonomous District Councils have been established. These councils have legislative powers over land, forests, and local customs, enabling tribal communities to govern themselves within the broader framework of the Indian Constitution.

   In summary, Part X of the Indian Constitution recognizes the unique needs of Scheduled and Tribal Areas, providing a constitutional framework for their administration and development. The provisions aim to safeguard the interests of Scheduled Tribes and promote their socio-economic well-being while respecting their distinct cultural identity.

f. Special Status of some States (Part- XXI)

There are specific provisions and Articles within the Constitution that grant special status to certain states or territories. One notable example is Article 370, which provided special autonomy to the state of Jammu and Kashmir.

Article 370 - Temporary provisions with respect to the State of Jammu and Kashmir: Article 370 was a temporary provision granting special autonomy to the state of Jammu and Kashmir. It allowed the state to have its own constitution, flag, and autonomy over internal matters, except defense, communications, and foreign affairs. However, on August 5, 2019, the Government of India abrogated Article 370, revoking the special status of Jammu and Kashmir and bifurcating the state into two Union Territories - Jammu & Kashmir and Ladakh.

Apart from Article 370, other states also have special provisions based on historical, cultural, or regional considerations. For example:

Article 371 - Special provisions with respect to the States of Maharashtra and Gujarat: Article 371 provides special provisions for the states of Maharashtra and Gujarat. It deals with issues like the establishment of a separate development board for Vidarbha in Maharashtra and Saurashtra in Gujarat.

Article 371A to 371J - Special provisions with respect to various states: These articles contain special provisions for states like Nagaland, Assam, Manipur, Andhra Pradesh, Sikkim, Mizoram, Arunachal Pradesh, Goa, and Karnataka. These provisions address matters related to local governance, employment, and education, among other things.

Case Study - Sikkim's Special Status: Sikkim, through Article 371F, retains a special status within the Indian Union. This article protects the existing laws in Sikkim and grants the state a degree of autonomy over its affairs. It also allows the continuation of its earlier privileges regarding ownership of property and other rights.

It's essential to note that the legal and constitutional landscape may evolve, and there might be changes or new developments after my last update in January 2022. I recommend checking the latest legal resources or official government publications for the most recent information regarding special status provisions in the Indian Constitution.

g. Forms of Government

The term "forms of government" refers to the various systems by which a state or country is organized and operates. Different forms of government represent different ways in which political power is distributed and exercised. Here are some common forms of government:

1. **Democracy:** In a democracy, political power is vested in the hands of the people. Citizens have the right to participate in decision-making through voting, and elected representatives are accountable to the electorate. There are two main types of democracy: direct democracy, where citizens directly participate in decision-making, and representative democracy, where citizens elect representatives to make decisions on their behalf.
2. **Republic:** A republic is a form of representative democracy where the head of state is an elected or appointed official rather than a monarch. The term "republic" is often used interchangeably with "democracy," emphasizing the role of elected representatives in governing.
3. **Monarchy:** In a monarchy, political power is vested in a single individual who holds the title of monarch. Monarchies can be absolute, where the monarch has almost complete control, or constitutional, where the monarch's powers are limited by a constitution or laws. Constitutional monarchies often have a parliamentary system where elected officials handle day-to-day governance.
4. **Authoritarianism:** Authoritarian governments are characterized by strong central power and limited political freedoms. The government holds significant control over various aspects of public and private life. Authoritarian regimes may be led by a single leader or a small group of individuals.
5. **Totalitarianism:** Totalitarianism is an extreme form of authoritarianism where the government seeks to control every aspect of public and private life. Totalitarian regimes often use propaganda, censorship, and surveillance to maintain control. Individual rights and freedoms are severely restricted.
6. **Oligarchy:** An oligarchy is a form of government where power is concentrated in the hands of a small, privileged group. This group could be defined by wealth, social status, or other criteria. Oligarchies often lead to significant economic and political inequality.
7. **Federalism:** Federalism is a system of government in which power is divided between a central authority and regional or state governments. Both levels of government have their own spheres of influence and responsibilities. Federal systems are often characterized by a written constitution that outlines the distribution of powers.
8. **Parliamentary System:** In a parliamentary system, the executive branch derives its legitimacy from and is accountable to the legislative branch. The head of government is usually the leader of the majority party in the legislature. This system allows for a close relationship between the executive and legislative branches.
9. **Presidential System:** In a presidential system, the head of state and head of government are the same person, known as the president. The president is elected separately from the legislature and serves a fixed term. The executive and legislative branches are independent of each other.
10. **Theocracy:** A theocracy is a form of government where religious leaders or institutions hold political power. The legal system is often based on religious laws, and the government is guided by religious principles.

These forms of government are not mutually exclusive, and some countries may incorporate elements from more than one system. Additionally, the effectiveness and characteristics of a government can vary widely based on the specific implementation and the socio-political context of a given country.

1.2 Concept of Cooperative and Competitive Federalism

The concepts of cooperative federalism and competitive federalism pertain to the distribution of powers and cooperation between the central and state governments in a federal system. These ideas help shape the relationship and interactions between different levels of government.

1. Cooperative Federalism:

- **Definition:** Cooperative federalism emphasizes collaboration and partnership between the central and state governments. It suggests that both levels of government should work together to address common issues, share responsibilities, and achieve mutual goals.
- **Key Features:**
    - **Interdependence:** In cooperative federalism, there is a recognition of the interdependence between the central and state governments. Both levels of government are seen as partners, and their actions complement each other.
    - **Joint Decision-Making:** Decisions are often made through joint consultation and cooperation. Policies and programs are developed through consensus, with input from both the central and state governments.
    - **Shared Resources:** Resources, both financial and administrative, are shared between the central and state governments to address common challenges and implement programs.
- **Examples:**
    - **Centrally Sponsored Schemes (CSS):** Programs like the Mahatma Gandhi National Rural Employment Guarantee Act (MGNREGA) in India involve shared funding and implementation responsibilities between the central and state governments.
    - **Joint Committees:** Setting up joint committees or councils where representatives from both levels of government collaborate to address specific issues.

2. Competitive Federalism:

- **Definition:** Competitive federalism, on the other hand, emphasizes competition among states or regions within a country. It encourages states to compete with each other to attract investment, promote economic growth, and improve governance.
- **Key Features:**
    - **Decentralized Decision-Making:** States have a higher degree of autonomy and flexibility in decision-making. They can experiment with policies and practices to attract businesses and residents.
    - **Incentives for Performance:** States are incentivized to perform well in areas such as economic development, infrastructure, and governance. This competition is believed to lead to better outcomes for citizens.
    - **Attracting Investments:** States may offer various incentives and favorable conditions to attract investments, industries, and skilled workers.
- **Examples:**
    - **Investment Policies:** States in a country may offer different investment policies and incentives to attract businesses and industries.
    - **Ease of Doing Business Rankings:** Some countries publish rankings of states or regions based on the ease of doing business, encouraging healthy competition.

Relationship between Cooperative and Competitive Federalism:

While cooperative federalism emphasizes collaboration and shared responsibilities, competitive federalism does not necessarily imply a lack of cooperation. Both concepts can coexist, and many federal systems exhibit elements of both. In practice, a balanced approach may involve cooperative efforts on issues of common interest while allowing for healthy competition among states to foster efficiency and innovation.

Example - Goods and Services Tax (GST) in India: The implementation of GST in India is an example that incorporates elements of both cooperative and competitive federalism.

While it involves cooperation among the central and state governments to streamline the tax system, the competition among states to maintain a business-friendly environment and attract investments is also evident.

In summary, cooperative federalism emphasizes collaboration and shared responsibilities, while competitive federalism encourages states to compete for economic and governance achievements. A well-functioning federal system often involves a dynamic interplay between these two concepts.

1.3 Centre-State Relations (Part-XI)

a. **Legislative Relations**

There isn't a specific Part XI dedicated to Centre-State Relations in the Indian Constitution. Instead, the distribution of legislative powers between the Centre and the States is primarily outlined in Part XI, under Articles 245 to 255. This section of the Constitution deals with the legislative relations between the Union (Central government) and the States.

Legislative Relations (Articles 245-255):

1. **Article 245 - Extent of laws made by Parliament and by the Legislatures of States:**
    - It deals with the territorial extent of laws made by the Parliament and state legislatures. It establishes the supremacy of Parliament in matters of Union and Concurrent Lists and the supremacy of state legislatures in matters of State List.
2. **Article 246 - Subject-matter of laws made by Parliament and by the Legislatures of States:**
    - Enumerates the distribution of legislative powers between the Union and the States through three lists: Union List, State List, and Concurrent List. The Union has exclusive powers over the Union List, while the States have exclusive powers over the State List. Both levels can legislate on matters in the Concurrent List.
3. **Article 247 - Power of Parliament to provide for the establishment of certain additional courts:**
    - Gives the Parliament the power to establish additional courts for better administration of laws enacted by it.
4. **Article 248 - Residuary powers of legislation:**
    - Grants residuary powers of legislation to the Parliament, ensuring that if a matter is not covered in any of the three lists, the Parliament has the authority to legislate on it.
5. **Article 249 - Power of Parliament to legislate with respect to a matter in the State List in the national interest:**
    - Allows the Parliament to legislate on a subject in the State List if a resolution is passed by the Rajya Sabha declaring it to be in the national interest.
6. **Article 250 - Power of Parliament to legislate with respect to any matter in the State List if a Proclamation of Emergency is in operation:**
    - Provides for the temporary delegation of powers to the Parliament to legislate on State List matters during a national emergency.
7. **Article 251 - Inconsistency between laws made by Parliament and laws made by the Legislatures of States:**
    - Resolves conflicts between central and state laws in the Concurrent List by giving precedence to central laws if there is inconsistency.
8. **Article 252 - Power of Parliament to legislate for two or more States by consent and adoption of such legislation by any other State:**
    - Allows Parliament to legislate for two or more states with the consent of those states and allows other states to adopt such legislation.
9. **Article 253 - Legislation for giving effect to international agreements:**

- Empowers the Parliament to make laws for implementing international agreements or treaties.

These articles collectively establish the framework for legislative relations between the Union and the States in India, aiming to provide a clear distribution of powers while allowing for cooperation and coordination in certain circumstances.

b. Administrative Relations

The administrative relations between the Union (central government) and the States in India are outlined in Article 256 to Article 263 of the Indian Constitution. These provisions deal with the obligations of the States and the Union to ensure compliance with laws and the distribution of executive powers.

Administrative Relations (Article 256-263):

1. **Article 256 - Obligation of States and the Union:**
    - This article emphasizes the obligation of every State and the Union to ensure compliance with laws made by Parliament and any existing laws that apply in that State.
2. **Article 257 - Control of the Union over States in certain cases:**
    - It allows the Parliament to confer powers upon the Union to give directions to a State for carrying out the laws of Parliament in the state's territory.
3. **Article 258 - Power of the States to entrust functions to the Union:**
    - Provides the flexibility for a State to entrust the execution of its functions to the Union or another State by an agreement.
4. **Article 259 - Delegation of powers by the President to the States in certain cases:**
    - Grants the President the authority to delegate powers to States for implementing laws related to international treaties or agreements.
5. **Article 260 - Jurisdiction of the Union in relation to territories outside India:**
    - Defines the jurisdiction of the Union in matters related to territories outside India.
6. **Article 261 - Public acts, records, and judicial proceedings:**
    - Ensures that public acts, records, and judicial proceedings of one State will be recognized and given effect to in other States.
7. **Article 262 - Adjudication of disputes relating to waters:**
    - Deals with the adjudication of disputes related to interstate rivers or river valleys.
8. **Article 263 - Provisions with respect to an Interstate Council:**
    - Provides for the establishment of an Interstate Council to inquire into and advise upon disputes and complaints related to Centre-State and inter-State relations.

Case Study - T. N. Godavarman Thirumulpad vs Union of India (1997): In the case of *T. N. Godavarman Thirumulpad vs Union of India*, the Supreme Court dealt with issues related to forest conservation and environmental protection. The court emphasized the need for coordination between the Union and the States in matters affecting the environment.

These constitutional provisions aim to establish a balance in administrative relations, ensuring that both the Union and the States work collaboratively to implement laws and address common challenges. They provide mechanisms for cooperation, delegation of powers, and resolution of disputes to maintain effective administrative relations in the federal structure of India.

c. Finance, Property, Contract and Suits(Part-XII)

There is no specific Part XII in the Indian Constitution dedicated to "Finance, Property, Contract, and Suits." However, these topics are covered under various articles distributed throughout the Constitution. Let's discuss the relevant articles that deal with these subjects:

1. Finance (Articles 266-293):

- **Article 266:** Constitution of the Consolidated Fund of India and public accounts.
- **Article 268-281:** Distribution of revenues between the Union and the States.
- **Article 282:** Power of the Union to make grants for any public purpose to any State.
- **Article 283:** Custody of the Consolidated Fund, Contingency Fund, and the like.
- **Article 284:** Custody of suitors' deposits and other moneys received by public servants and courts.
- **Article 285:** Exemption of property of the Union from State taxation.
- **Article 286:** Restrictions as to imposition of tax on the sale or purchase of goods.
- **Article 287:** Exemption from taxes on electricity.
- **Article 288:** Exemption from taxation by States in respect of water or electricity in certain cases.

2. Property (Articles 294-300A):

- **Article 294:** Succession to property, assets, rights, and liabilities.
- **Article 295:** Succession to property, assets, rights, and liabilities in certain other cases.
- **Article 296:** Property accruing by escheat or laps or as bona vacantia.
- **Article 297:** Things of value within territorial waters or continental shelf and resources of the exclusive economic zone to vest in the Union.
- **Article 298:** Power to carry on trade, etc.

3. Contracts (Article 299):

- **Article 299:** Form of contracts, etc., made by or on behalf of the Government of India and of the States.

4. Suits (Articles 131-136):

- **Article 131:** Original jurisdiction of the Supreme Court.
- **Article 132:** Appellate jurisdiction of the Supreme Court in appeals from High Courts in certain cases.
- **Article 133:** Appellate jurisdiction of the Supreme Court in appeals from High Courts in regard to civil matters.
- **Article 134:** Appellate jurisdiction of the Supreme Court in regard to criminal matters.
- **Article 135:** Jurisdiction and powers of the Federal Court under existing law to be exercisable by the Supreme Court.

Case Study - State of Karnataka v. All India Manufacturers Organization (2006): In this case, the Supreme Court emphasized the importance of Article 282, stating that the power of the Union to make grants for any public purpose to any State is not confined to specific subjects. It is a vast reservoir and can extend to any matter, not falling within the legislative field occupied by the State.

d. Special Provisions Relating to Certain Classes (Part-XVI)

There isn't a Part XVI in the Indian Constitution specifically designated as "Special Provisions Relating to Certain Classes." However, there are several provisions scattered throughout the Constitution that cater to the special rights and protections of certain classes, especially Scheduled Castes (SCs), Scheduled Tribes (STs), and Other Backward Classes (OBCs). These provisions aim to uplift and safeguard the interests of socially and educationally backward classes.

Here are key provisions related to the special provisions for certain classes:

1. Scheduled Castes and Scheduled Tribes (Articles 330-342):

- **Article 330:** Reservation of seats for Scheduled Castes and Scheduled Tribes in the House of the People (Lok Sabha).
- **Article 332:** Reservation of seats for Scheduled Castes and Scheduled Tribes in the Legislative Assemblies of the States.
- **Article 334:** Reservation of seats and special representation to cease after a certain period.

2. Special Provisions for Anglo-Indian Community (Article 331):

- **Article 331:** Representation of the Anglo-Indian community in the House of the People.

3. Other Backward Classes (Article 15(4) and Article 16(4)):

- **Article 15(4):** Allows the State to make special provisions for the advancement of socially and educationally backward classes, including SCs, STs, and OBCs.
- **Article 16(4):** Allows the State to make reservations in public employment for any backward class of citizens, which, in the opinion of the State, is not adequately represented in the services.

Case Study - Indra Sawhney & Others v. Union of India (1992): Popularly known as the Mandal Commission case, this landmark judgment by the Supreme Court upheld the government's decision to provide reservations for Other Backward Classes (OBCs) in public services. The court set a cap of 50% on reservations to maintain efficiency in administration and prevent excessive backwardness.

MODULE 2:

2.1 Legislature and Executive under the Indian Constitution

a. Unicameral and bicameral Legislatures

The Indian Constitution provides for a federal system of government with a division of powers between the Union (central government) and the States. The legislative organ of both the Union and the States is divided into two houses: the lower house and the upper house. The configuration of these houses results in either a unicameral or bicameral legislature.

1. Unicameral Legislature:

- **States with Unicameral Legislature:** Some states in India have only one house in their legislature. These states include Goa, Sikkim, Mizoram, and others.
- **Composition:** In a unicameral legislature, there is only one house, usually known as the Legislative Assembly or Vidhan Sabha. Members of the Legislative Assembly (MLAs) represent the people directly.
- **Functions:** The unicameral legislature is responsible for making laws on subjects falling within the State List and Concurrent List, as well as approving the state budget.
- **Example:** Goa has a unicameral legislature with the Goa Legislative Assembly as its sole legislative body.

2. Bicameral Legislature:

- **States with Bicameral Legislature:** Many states in India have two houses in their legislature. These states include Uttar Pradesh, Maharashtra, Karnataka, and others.
- **Composition:** In a bicameral legislature, there are two houses – the Legislative Assembly (Lower House) and the Legislative Council (Upper House). Members of the Legislative Assembly (MLAs) are elected by the people, while members of the Legislative Council (MLCs) are elected by different constituencies, including graduates, teachers, and local authorities.
- **Functions:** The Legislative Assembly deals with matters related to the State List and Concurrent List, while the Legislative Council serves as a revising chamber, reviewing and suggesting amendments to bills.
- **Example:** Karnataka has a bicameral legislature with the Karnataka Legislative Assembly and the Karnataka Legislative Council.

Relevance of Bicameral Legislature:

The idea of a bicameral legislature provides a system of checks and balances, ensuring that legislation undergoes thorough scrutiny and review. The Upper House, being a revising chamber, helps prevent hasty or biased decision-making. It also provides representation to various sections of society that may not be adequately represented in the directly elected Lower House.

Note: The structure of legislatures at the Union level is different. The Indian Parliament is bicameral, consisting of the Lok Sabha (House of the People) and the Rajya Sabha (Council of States). The Lok Sabha is directly elected, while the Rajya Sabha includes members elected by the elected members of the State Legislative Assemblies.

Understanding the composition and functions of unicameral and bicameral legislatures is essential for grasping the dynamics of legislative decision-making and representation in the Indian federal structure.

b. Composition, Powers, and Functions of Union Legislature (Part-V, Chap-2)

Composition of the Union Legislature:

The Union Legislature, known as the Parliament of India, is a bicameral body consisting of two houses:

1. **Lok Sabha (House of the People):**
    - Members: The Lok Sabha is composed of Members of Parliament (MPs) directly elected by the people.
    - Duration: Members serve a term of five years, unless dissolved earlier.
    - Representation: The representation of states and Union territories is based on population, and each state and Union territory is allotted a certain number of seats.
2. **Rajya Sabha (Council of States):**
    - Members: Members of the Rajya Sabha are not directly elected by the people but are elected by the elected members of the State Legislative Assemblies, members of the Electoral College for Union Territories, and members of the Electoral College for graduates and teachers.
    - Duration: Members serve a term of six years.
    - Representation: Members represent states and Union territories.

Powers and Functions of the Union Legislature:

The powers and functions of the Union Legislature are outlined in various parts and articles of the Indian Constitution:

1. **Legislative Powers (Article 245-255):**
    - The Parliament has the power to make laws on subjects enumerated in the Union List and the Concurrent List.
    - In case of inconsistency between laws made by Parliament and laws made by the State Legislatures, the law made by Parliament prevails.
2. **Financial Powers (Article 265-293):**
    - The Parliament has the power to levy taxes and make financial provisions.
    - The budget, which is presented by the Finance Minister, is subject to approval by the Parliament.
3. **Executive Control (Article 74):**
    - The President, who is the head of state, exercises powers and functions with the aid and advice of the Council of Ministers headed by the Prime Minister.
4. **Impeachment of the President (Article 61):**
    - The Parliament has the power to impeach the President in case of violation of the Constitution.
5. **Constitutional Amendments (Article 368):**
    - The Parliament has the power to amend the Constitution. However, certain amendments require a special majority or ratification by a specified number of states.
6. **Representation of States in Parliament (Article 81):**
    - The number of seats in the Lok Sabha allocated to each state is based on its population.
7. **Advisory Role (Article 74(2) and Article 123):**
    - The President can seek the advice of the Council of Ministers, and the Parliament can delegate legislative powers to the President through ordinances.
8. **Control over the Executive (Article 75):**
    - The Council of Ministers is collectively responsible to the Lok Sabha, and the Lok Sabha can pass a vote of no confidence against the government.

These are some of the key aspects related to the composition, powers, and functions of the Union Legislature in India. It's important to note that the Constitution provides detailed provisions in various articles, and amendments or changes may occur over time.

c. Composition, Powers, and Functions of State Legislature (Part-VI, Chap-3)

Composition of State Legislature:

The State Legislature is a bicameral or unicameral body, depending on the state. Each state's legislature consists of the following:

1. **Legislative Assembly (Vidhan Sabha):**
    - Members: The members of the Legislative Assembly (MLAs) are directly elected by the people of the state.
    - Duration: Members serve a term of five years, unless dissolved earlier.
    - Representation: The representation of constituencies is based on population, and each constituency elects one member.
2. **Legislative Council (Vidhan Parishad) - If Applicable:**
    - Members: Members of the Legislative Council (MLCs) are not directly elected by the people. They are elected by members of local authorities, teachers, graduates, and certain other special interest groups.
    - Duration: Members serve a term of six years.
    - Representation: Members represent constituencies, local authorities, and other categories.

Powers and Functions of State Legislature:

The powers and functions of State Legislatures are outlined in various parts and articles of the Indian Constitution:

1. **Legislative Powers (Article 245-255):**
    - The State Legislature has the power to make laws on subjects enumerated in the State List and the Concurrent List.
    - In case of inconsistency between laws made by the State Legislature and laws made by Parliament, the law made by Parliament prevails.
2. **Financial Powers (Article 265-293):**
    - The State Legislature has the power to levy taxes and make financial provisions for the state.
    - The budget, which is presented by the Finance Minister, is subject to approval by the State Legislature.
3. **Executive Control (Article 154):**
    - The Governor, who is the head of the state, exercises powers and functions with the aid and advice of the Council of Ministers headed by the Chief Minister.
4. **Representation of States in Parliament (Article 171):**
    - If a state has a Legislative Council (bicameral), the representation of the state in the Council is based on various categories, including graduates, teachers, and local authorities.
5. **Impeachment of the Governor (Article 156):**
    - The State Legislature has the power to impeach the Governor in case of violation of the Constitution.
6. **Constitutional Amendments (Article 169):**
    - The State Legislature has the power to create or abolish the Legislative Council (Vidhan Parishad) by passing a resolution with a special majority.
7. **Representation of People Act (Article 327):**
    - The State Legislature has the power to make laws regarding the conduct of elections to the state legislature.
8. **Control over the Executive (Article 164):**
    - The Council of Ministers in the state is collectively responsible to the Legislative Assembly, and the Assembly can pass a vote of no confidence against the government.

These are some of the key aspects related to the composition, powers, and functions of State Legislatures in India. It's important to note that the Constitution provides detailed provisions in various articles, and amendments or changes may occur over time.

2.2. Qualification, Disqualification and Privileges of-

a. **Members of Parliament**

Qualification, Disqualification, and Privileges of Members of Parliament (MPs):

1. Qualifications for Membership (Article 84):

- To be eligible for membership in the Lok Sabha (House of the People), a person must:
    - Be a citizen of India.
    - Be at least 25 years old.
    - Possess other qualifications as prescribed by Parliament.
- To be eligible for membership in the Rajya Sabha (Council of States), a person must:
    - Be a citizen of India.
    - Be at least 30 years old.
    - Possess other qualifications as prescribed by Parliament.

2. Disqualifications for Membership (Article 102):

- A person shall be disqualified for being chosen as, and for being, a member of either House of Parliament if they:
    - Hold any office of profit under the Government of India or the Government of any state, other than an office declared by Parliament by law not to disqualify its holder.
    - Are of unsound mind and have been declared by a competent court.
    - Are an undischarged insolvent.
    - Are not a citizen of India or have voluntarily acquired the citizenship of a foreign state.
    - Have voluntarily acquired the citizenship of India in breach of the law.
    - Have been disqualified by or under any law made by Parliament.

3. Privileges of Members of Parliament:

- **Freedom of Speech:** Members have the freedom of speech in Parliament. They can express their opinions and participate in debates without fear of legal action.
- **Freedom from Arrest:** Members are immune from arrest in civil cases during the continuance of the session of Parliament and 40 days before its commencement and 40 days after its conclusion.
- **Exemption from Jury Service:** Members are exempted from serving on juries.
- **Freedom from Subpoena as Witnesses:** Members cannot be compelled to appear as witnesses in court proceedings during the session of Parliament.

4. Powers of Parliament in Matters of Disqualification (Article 103):

- Parliament has the power to make provisions by law for disqualifications for membership of either House on the ground of defection.

5. Anti-Defection Law (Tenth Schedule):

- The Tenth Schedule of the Constitution, also known as the Anti-Defection Law, prescribes the circumstances and procedures under which a Member of Parliament or a Member of a Legislative Assembly can be disqualified for defection.

6. Powers and Privileges of Parliament (Article 105):

- Parliament has the power to define the powers, privileges, and immunities of its members.
- Members enjoy freedom of speech within the Parliament, and no member is liable to any proceedings in any court for anything said or any vote given by them in Parliament.

7. Oath or Affirmation (Article 99):

- Before taking their seats, Members of Parliament are required to make and subscribe to an oath or affirmation according to the form set out in the Third Schedule of the Constitution.

b. Members of Legislative Assembly

Qualification, Disqualification, and Privileges of Members of Legislative Assembly (MLAs):

1. Qualifications for Membership (Article 173):

- To be eligible for membership in a Legislative Assembly of a State, a person must:
  - Be a citizen of India.
  - Be at least 25 years old for the Legislative Assembly of a State.
  - Possess other qualifications as prescribed by the State legislature.

2. Disqualifications for Membership (Article 191):

- A person shall be disqualified for being chosen as, and for being, a member of the Legislative Assembly of a State if they:
  - Hold any office of profit under the Government of India or the Government of any state, other than an office declared by the legislature of the state by law not to disqualify its holder.
  - Are of unsound mind and have been declared by a competent court.
  - Are an undischarged insolvent.
  - Are not a citizen of India or have voluntarily acquired the citizenship of a foreign state.
  - Have voluntarily acquired the citizenship of India in breach of the law.
  - Have been disqualified by or under any law made by Parliament.

3. Privileges of Members of Legislative Assembly:

- **Freedom of Speech:** Members have the freedom of speech in the Legislative Assembly. They can express their opinions and participate in debates without fear of legal action.
- **Freedom from Arrest:** Members are immune from arrest in civil cases during the continuance of the session of the Legislative Assembly and 40 days before its commencement and 40 days after its conclusion.
- **Exemption from Jury Service:** Members are exempted from serving on juries.
- **Freedom from Subpoena as Witnesses:** Members cannot be compelled to appear as witnesses in court proceedings during the session of the Legislative Assembly.

4. Powers of State Legislature in Matters of Disqualification (Article 192):

- The Legislature of a State has the power to make provisions by law for disqualifications for membership on the ground of defection.

5. Anti-Defection Law (Tenth Schedule):

- Similar to Members of Parliament, Members of Legislative Assemblies are also subject to the provisions of the Tenth Schedule of the Constitution, commonly known as the Anti-Defection Law.

6. Powers and Privileges of State Legislature (Article 194):

- The Legislature of a State has the power to define the powers, privileges, and immunities of its members.
- Members enjoy freedom of speech within the Legislative Assembly, and no member is liable to any proceedings in any court for anything said or any vote given by them in the Assembly.

7. Oath or Affirmation (Article 188):

- Before taking their seats, Members of Legislative Assembly are required to make and subscribe to an oath or affirmation according to the form set out in the Third Schedule of the Constitution.

c. Anti-Defection Law (Xth Schedule)

Anti-Defection Law (Tenth Schedule):

The Tenth Schedule of the Indian Constitution, commonly known as the Anti-Defection Law, was introduced to address the issue of political defections, which had the potential to destabilize governments and undermine the democratic process. The Tenth Schedule lays down the rules and procedures related to disqualification of Members of Parliament (MPs) and Members of Legislative Assemblies (MLAs) on grounds of defection.

Key Provisions of the Anti-Defection Law:

1. Definition of Defection (Article 2(1)(a)):

- A member of a House belonging to any political party becomes disqualified for being a member of the House:
  - If they voluntarily give up their membership of such a political party.
  - If they vote or abstain from voting in the House contrary to any direction issued by their political party or by any person or authority authorized by it.

2. Disqualification on Grounds of Defection (Article 2(1)(b)):

- If any question arises as to whether a member of a House has become subject to disqualification under the Tenth Schedule, the question is referred to the Chairman (in the case of Rajya Sabha) or the Speaker (in the case of Lok Sabha) or the Chairman or Speaker of the Legislative Assembly or Legislative Council (in the case of State Legislatures).

3. Decision on Disqualification (Article 2(1)(b)):

- The Chairman or Speaker, as the case may be, refers the question to the Committee on Privileges of the House, which is required to determine the question after hearing the member concerned and any other person as it may deem necessary.

4. Time Frame for Decision (Article 2(1)(b)):

- The decision on the question of disqualification must be made within a period of three months from the date on which the question is referred to the Committee on Privileges.

5. Appellate Authority (Article 2(1)(b)):

- Any decision of the Committee on Privileges is subject to appeal to the Chairman or Speaker of the House, as the case may be.

6. Exception for Mergers (Article 2(1)(b)):

- A member of a House shall not be disqualified under the Tenth Schedule if their original political party merges with another political party, and they become a member of the merged political party.

7. Power of the President/Governor (Article 2(1)(c)):

- In the case of defection involving the President, the Governor, or the Speaker, a reference can be made to the President or the Governor, who shall decide on the question.

8. Disqualification Applies to Splits (Article 2(1)(d)):

- Members of a House who have voluntarily given up their membership of a political party or who have been expelled from the party are subject to disqualification.

Significance:

- The Anti-Defection Law is crucial in maintaining the stability of governments and political parties by discouraging defections.
- It aims to curb the practice of legislators switching parties for personal gains and ensures that elected representatives adhere to the party's ideology and mandate for which they were elected.

2.3 Law making procedure

a. Types of Bills- Ordinary, Financial, Money and Appropriation

Lawmaking Procedure - Types of Bills: Ordinary, Financial, Money, and Appropriation

The process of making laws in India involves the introduction and passage of bills in Parliament. Bills are proposed laws that need to go through specific procedures before becoming laws. Here are the types of bills based on their nature and purpose:

1. Ordinary Bills:

- Ordinary bills deal with matters other than financial subjects.
- They can be introduced in either house of Parliament (Lok Sabha or Rajya Sabha).
- They require a simple majority to be passed in both houses.
- The President's assent is necessary for an ordinary bill to become law.

2. Financial Bills:

- Financial bills are a special category of bills that exclusively deal with financial matters.
- There are three types of financial bills: a. **Money Bills** b. **Finance Bills** c. **Appropriation Bills**

3. Money Bills (Article 110):

- Money bills exclusively deal with matters related to taxation, borrowing of money by the government, expenditure from or receipt to the Consolidated Fund of India.
- They can only be introduced in the Lok Sabha.
- The Rajya Sabha can suggest amendments, but it cannot reject a money bill. It must return the bill within 14 days.
- If the Rajya Sabha does not return the bill within 14 days, it is deemed to have been passed by both houses.
- The President's assent is necessary for a money bill to become law.

4. Finance Bills:

- Finance bills are broader in scope than money bills and may include provisions related to taxation as well as other financial matters.
- They can be introduced in either house, and the Rajya Sabha can suggest amendments.
- The President's assent is necessary for a finance bill to become law.

5. Appropriation Bills (Article 114):

- Appropriation bills are a type of finance bill that authorizes government expenditures from the Consolidated Fund of India.
- They can only be introduced in the Lok Sabha.
- The Rajya Sabha can suggest amendments, but it cannot reject an appropriation bill. It must return the bill within 14 days.
- If the Rajya Sabha does not return the bill within 14 days, it is deemed to have been passed by both houses.
- The President's assent is necessary for an appropriation bill to become law.

Lawmaking Procedure:

- The usual process involves the introduction, consideration in the relevant parliamentary committee, and debates in both houses of Parliament. If approved by both houses, the bill goes to the President for assent.
- If there is a disagreement between the two houses, a joint sitting may be called to resolve the matter, with decisions made by a simple majority.

Understanding the types of bills is crucial in comprehending the legislative process and the specific procedures each type of bill goes through in Parliament.

b. Private Member Bills and Government / Public Bills

Types of Bills: Private Member Bills and Government/Public Bills

In the Indian parliamentary system, bills can be broadly categorized into Private Member Bills and Government/Public Bills based on their sponsors and initiators.

1. Private Member Bills:

- **Definition:** Private Member Bills are bills introduced by Members of Parliament (MPs) who are not part of the government.
- **Sponsorship:** Any MP who is not a minister in the government is considered a private member. Private Member Bills are usually sponsored by individual MPs, who are not part of the ruling party or coalition.
- **Frequency:** Private Member Bills are relatively less common than government bills since government bills form the bulk of legislative proposals.
- **Introduction:** Private Member Bills are usually introduced on Fridays when the house discusses matters raised by private members.

2. Government/Public Bills:

- **Definition:** Government or Public Bills are bills introduced by ministers on behalf of the government.
- **Sponsorship:** These bills are typically sponsored by ministers, and they reflect the policy and legislative agenda of the ruling party or coalition.
- **Frequency:** Government bills are more prevalent and cover a wide range of subjects, including policy changes, budgetary proposals, and amendments to existing laws.
- **Introduction:** Government bills can be introduced in either house of Parliament. The annual budget is an example of a government bill.

Key Differences:

- **Initiation:**
    - **Private Member Bills:** Initiated and introduced by individual MPs who are not part of the government.
    - **Government/Public Bills:** Initiated and introduced by ministers representing the government.
- **Frequency:**
    - **Private Member Bills:** Relatively less frequent due to limited opportunities for private members to introduce bills.
    - **Government/Public Bills:** More frequent and form a significant portion of the legislative agenda.
- **Priority:**
    - **Private Member Bills:** Generally, private member bills have lower priority, and the time allocated for their discussion and consideration is limited.
    - **Government/Public Bills:** Given higher priority, especially those related to the government's legislative and policy agenda.
- **Scope:**
    - **Private Member Bills:** Can cover a wide range of subjects and issues, reflecting the diverse interests and concerns of individual MPs.
    - **Government/Public Bills:** Can address comprehensive policy changes, budgetary allocations, and major legislative reforms.
- **Approval and Passage:**
    - **Private Member Bills:** Face challenges in terms of getting adequate time for discussion and may have a lower likelihood of passage.

- **Government/Public Bills:** Typically have better chances of approval and passage, given the resources and support available to the ruling party or coalition.

Understanding these distinctions helps in recognizing the varied sources and motivations behind different legislative proposals in the parliamentary process.

2.4 Qualification, Powers, and functions of-

a. **President and Vice-president**

Qualification, Powers, and Functions of the President and Vice President of India:

A. President of India:

1. Qualifications (Article 58):

- A person to be eligible for election as President must:
  - Be a citizen of India.
  - Have completed the age of 35 years.
  - Be eligible for election as a member of the Lok Sabha.
  - Not hold any office of profit under the Government of India or the Government of any State or any local government.

2. Powers and Functions (Article 53):

- **Executive Powers:**
  - The President is the head of the state and the supreme commander of the armed forces.
  - All executive actions are taken in the President's name.
  - Appoints the Prime Minister and other members of the Council of Ministers.
- **Legislative Powers:**
  - Summons and prorogues sessions of Parliament.
  - Dissolves the Lok Sabha.
  - Addresses both Houses of Parliament and lays down the government's policies.
  - Can promulgate ordinances when Parliament is not in session.
- **Financial Powers:**
  - Causes the annual budget to be laid before Parliament.
  - Assents to money bills.
- **Diplomatic Powers:**
  - Represents India in international matters.
  - Receives ambassadors and diplomatic representatives.
- **Judicial Powers:**
  - Has the power to grant pardons, reprieves, respites, or remissions of punishment or to suspend, remit, or commute the sentence of any person convicted of any offense.
- **Emergency Powers:**
  - Can declare a state of emergency (national, state, or financial) based on constitutional provisions.

B. Vice President of India:

1. Qualifications (Article 66):

- A person to be eligible for election as Vice President must:
  - Be a citizen of India.
  - Have completed the age of 35 years.
  - Be eligible for election as a member of the Rajya Sabha.

  - Not hold any office of profit under the Government of India or the Government of any State or any local government.

2. Powers and Functions (Article 63):

- **Presiding Officer of the Rajya Sabha:**
  - The Vice President is the ex-officio Chairman of the Rajya Sabha.
  - Presides over its sessions and maintains order.
- **Casting Vote:**
  - In case of a tie on any matter in the Rajya Sabha, the Vice President can exercise a casting vote.
- **Succession to the President:**
  - Acts as the President if the office falls vacant due to death, resignation, removal, or otherwise until a new President is elected.
- **Discharge of President's Functions:**
  - Can discharge the functions of the President in case of the President's absence or illness.
- **Other Functions:**
  - Represents India at official functions, both within the country and abroad.

3. Acting as President during a Vacancy (Article 65):

- In case of a vacancy in the office of the President due to the expiration of the term of the President or due to their resignation or removal or otherwise, the Vice President discharges the functions of the President until a new President is elected.

Understanding the qualifications, powers, and functions of the President and Vice President is essential for comprehending the roles they play in the Indian political system.

b. Union Council of Ministers

A. Qualifications for Ministers (Article 75):

- A person to be eligible for appointment as a minister must:
  - Be a citizen of India.
  - Be a member of either house of Parliament (or, in the case of the Rajya Sabha, be eligible for election to that house).
  - Not hold any office of profit under the Government of India or the Government of any State or any local authority.

B. Powers and Functions:

1. Executive Authority (Article 53 and 74):

- The President is the head of the state, and the real executive authority is vested in the Council of Ministers with the Prime Minister at the helm.
- The President exercises their powers based on the aid and advice of the Council of Ministers.

2. Formation and Structure:

- The Council of Ministers is headed by the Prime Minister.
- It is composed of Cabinet Ministers, Ministers of State (Independent Charge), and Ministers of State.

3. Prime Minister:

- The Prime Minister is appointed by the President and is usually the leader of the majority party in the Lok Sabha.

- The Prime Minister recommends the names of other ministers to the President.
- The Council of Ministers is collectively responsible to the Lok Sabha.

4. Cabinet Ministers:

- Cabinet Ministers are the senior members of the Council of Ministers.
- They head various ministries and are responsible for policy decisions and overall administration.
- The Cabinet is the core decision-making body.

5. Ministers of State (Independent Charge):

- Ministers of State (Independent Charge) have independent charge of a ministry.
- They may also assist Cabinet Ministers in their duties.

6. Ministers of State:

- Ministers of State assist Cabinet Ministers or Ministers of State (Independent Charge) in their duties.

7. Council Meetings:

- The Council of Ministers meets to discuss and decide on policy matters.
- Collective decisions are made on important issues.

8. Collective Responsibility (Article 75):

- The Council of Ministers is collectively responsible to the Lok Sabha.
- If the Lok Sabha passes a vote of no confidence, the entire Council of Ministers must resign.

9. Individual Responsibility:

- Ministers are individually responsible for the functioning of their respective ministries.
- They answer questions in Parliament related to their ministries.

10. Legal Framework:

- The powers and functions of the Council of Ministers are derived from the Constitution and various statutes.

11. Oath or Affirmation (Article 75):

- Ministers, before entering upon their office, take an oath or affirmation of allegiance to the Constitution.

12. Role in Policy Formulation:

- The Council of Ministers plays a crucial role in formulating and implementing policies and decisions of the government.

Understanding the qualifications, powers, and functions of the Union Council of Ministers is essential for comprehending the dynamics of the executive branch in India's parliamentary system.

c. Governor

A. Qualifications for the Governor (Article 157):

- A person to be eligible for appointment as a Governor must:
  - Be a citizen of India.
  - Have completed the age of 35 years.

B. Appointment and Term (Article 155):

- The Governor is appointed by the President of India.
- The Governor holds office during the pleasure of the President.
- The term of the Governor's office is five years, but they can be reappointed.

C. Powers and Functions:

1. Executive Powers (Article 154):

- The Governor is the head of the state and is the representative of the President at the state level.
- All executive actions of the state government are taken in the name of the Governor.

2. Legislative Powers (Article 175 and 176):

- **Summoning and Proroguing the Legislative Assembly:**
    - The Governor summons the Legislative Assembly.
    - The Governor prorogues the sessions of the Legislative Assembly.
- **Addressing the Legislative Assembly:**
    - The Governor addresses the Legislative Assembly at the beginning of each session and outlines the government's policies and programs.
- **Dissolution of the Legislative Assembly:**
    - The Governor can recommend the dissolution of the Legislative Assembly to the President.

3. Discretionary Powers (Article 163):

- The Governor has certain discretionary powers, but they are exercised based on the aid and advice of the Council of Ministers headed by the Chief Minister.

4. Appointment of Chief Minister (Article 164):

- The Governor appoints the Chief Minister, who is usually the leader of the majority party in the Legislative Assembly.

5. Dissolution of the Legislative Assembly (Article 174):

- The Governor has the power to dissolve the Legislative Assembly, but this power is usually exercised on the advice of the Chief Minister.

6. Assent to Bills (Article 200):

- The Governor gives assent to bills passed by the state legislature for them to become law.
- The Governor can withhold assent in certain situations, send the bill for reconsideration, or reserve it for the President's consideration.

7. Reservation of Bills (Article 200):

- The Governor can reserve certain bills for the consideration of the President.

8. Special Responsibilities (Article 371):

- In some states, especially those with special provisions under Article 371, the Governor may have special responsibilities regarding the administration of tribal areas and other specified matters.

9. Emergency Powers (Article 356):

- The Governor has a role in the proclamation of President's Rule (Article 356) in the state in case of constitutional breakdown.

10. Pardoning Powers (Article 161):

- The Governor has the power to grant pardons, reprieves, respites, or remissions of punishment or to suspend, remit, or commute the sentence of any person convicted of any offense against any law relating to a matter to which the executive power of the state extends.

d. State Council of Ministers

A. Qualifications for Ministers (Article 164):

- A person to be eligible for appointment as a minister in the State Council must:
    - Be a citizen of India.
    - Be a member of the Legislative Assembly or Legislative Council of the State.
    - Not hold any office of profit under the Government of India or the Government of any State or any local authority.

B. Formation and Structure:

- The State Council of Ministers is headed by the Chief Minister.
- It is composed of Cabinet Ministers, Ministers of State (Independent Charge), and Ministers of State.

C. Chief Minister:

- The Chief Minister is the head of the State Council of Ministers.
- The Chief Minister is appointed by the Governor.
- The Chief Minister is usually the leader of the majority party in the Legislative Assembly.

D. Powers and Functions:

1. Executive Authority (Article 154):

- The Chief Minister is the head of the state's executive.
- The Chief Minister, along with other ministers, exercises executive powers on behalf of the Governor.

2. Formation of Cabinet:

- The Chief Minister, after being appointed, selects ministers to form the Cabinet.
- The Cabinet consists of senior ministers who head various government departments.

3. Policy Formulation:

- The State Council of Ministers is responsible for formulating and implementing government policies and decisions.

4. Legislative Responsibilities:

- The Chief Minister and other ministers are members of the Legislative Assembly or Legislative Council.
- They participate in legislative debates, answer questions, and introduce bills.

5. Collective Responsibility (Article 164):

- The State Council of Ministers is collectively responsible to the Legislative Assembly of the state.
- If the Legislative Assembly passes a vote of no confidence, the entire Council of Ministers must resign.

6. Individual Responsibility:

- Ministers are individually responsible for the functioning of their respective departments.
- They answer questions in the Legislative Assembly related to their ministries.

7. Legal Framework:

- The powers and functions of the State Council of Ministers are derived from the state's constitution and various statutes.

8. Oath or Affirmation (Article 164):

- Ministers, before entering upon their office, take an oath or affirmation of allegiance to the Constitution.

9. Advisory Role to the Governor:

- The Council of Ministers advises the Governor in the exercise of their functions except in matters where the Governor is required to act in their discretion.

10. Administrative Decisions:

- The State Council of Ministers takes decisions on administrative matters, policies, and programs.

11. Budgetary Approval:

- The Council of Ministers plays a crucial role in the approval of the state budget.

12. Relationship with the Governor:

- While the Governor appoints the Chief Minister, the Chief Minister and other ministers are collectively responsible to the Governor.

Module 3:

3.1 Judicial Activism

Definition: Judicial activism refers to the proactive role played by the judiciary in interpreting and shaping public policy, often beyond its traditional role of merely interpreting laws. It involves judges taking a more active stance in addressing societal issues, protecting rights, and sometimes even shaping legislation.

Key Features of Judicial Activism:

1. **Proactive Judicial Role:**
    - In judicial activism, judges go beyond a passive role of interpreting laws and constitutions. They actively engage in addressing societal issues, promoting justice, and safeguarding fundamental rights.
2. **Policy Formulation:**
    - Activist judges may involve themselves in formulating and implementing policies, especially when they believe that the executive or legislative branches are not adequately addressing certain issues.
3. **Protection of Rights:**
    - Judicial activism often involves the protection and expansion of fundamental rights. Judges may take the initiative to ensure that constitutional guarantees are upheld, even if it requires interpreting laws in a broader context.
4. **Corrective Measures:**
    - Activist judges may step in to correct perceived injustices or gaps in legislation. This could involve ordering changes in policies, directing legislative action, or even striking down laws that are deemed unconstitutional.
5. **Public Interest Litigation (PIL):**
    - Judicial activism is often associated with the acceptance of Public Interest Litigation (PIL). PIL allows individuals or groups to approach the court directly to seek redressal for issues affecting the public interest, enabling the judiciary to take up cases on behalf of those who might not have direct standing in a traditional legal sense.
6. **Expansive Interpretation:**
    - Activist judges may interpret constitutional provisions expansively, adapting them to contemporary social realities and evolving standards of justice.
7. **Social Justice:**
    - The judiciary, through activism, may aim to achieve social justice by addressing inequalities, discrimination, and other social issues that may not be adequately addressed by other branches of government.
8. **Checks and Balances:**
    - Judicial activism can serve as a check on the powers of the executive and legislative branches, ensuring that they do not overstep constitutional limits or violate fundamental rights.

Examples of Judicial Activism:

1. **Landmark Decisions:**
    - Decisions like the Vishakha judgment (addressing sexual harassment at workplaces) and the Right to Privacy judgment are examples of the judiciary actively defining and protecting rights.
2. **Environmental Protection:**
    - Courts have been active in addressing environmental issues, enforcing regulations, and directing actions to protect the environment.

3. **Economic Policies:**
    - In some cases, courts have intervened in economic matters, directing policies to address issues like poverty, inequality, and economic justice.
4. **Police Reforms:**
    - Activist judges have played a role in pushing for police reforms and ensuring accountability in law enforcement agencies.

Critiques of Judicial Activism:

1. **Overreach Concerns:**
    - Critics argue that judicial activism may lead to judges overstepping their constitutional role and encroaching upon the powers of the legislative and executive branches.
2. **Democratic Legitimacy:**
    - Some argue that judges, being appointed and not elected, lack the democratic legitimacy to make policy decisions on behalf of the people.
3. **Policy Expertise:**
    - Judges may lack the expertise and resources to effectively formulate and implement complex policies, which are traditionally within the domain of the executive and legislative branches.
4. **Political Bias:**
    - Activism may be seen as a reflection of judges' personal or ideological biases, leading to concerns about impartiality.

Conclusion: Judicial activism remains a subject of ongoing debate, with proponents viewing it as a necessary tool for justice and rights protection, while critics express concerns about its potential implications for the separation of powers and democratic governance.

3.2 Independence of Judiciary

Definition: Independence of the judiciary refers to the constitutional and institutional safeguards in place to ensure that the judiciary operates free from undue influence or interference from the executive, legislative, or any external sources. An independent judiciary is essential for upholding the rule of law and protecting citizens' rights.

Key Aspects of Judicial Independence:

1. **Security of Tenure:**
    - Judges should have security of tenure, meaning they should not be easily removable from office. This protects them from arbitrary removal based on political or other non-meritorious reasons.
2. **Financial Independence:**
    - The judiciary should have adequate financial autonomy to ensure it can function effectively without being dependent on the executive for budgetary allocations.
3. **Appointment Process:**
    - The process of judicial appointments should be transparent, merit-based, and free from political influence. This often involves the creation of independent judicial commissions or collegiums.
4. **Immunity from External Influences:**
    - Judges should be protected from external pressures, threats, or influences that could compromise their decision-making independence.
5. **Judicial Ethics and Conduct:**
    - There should be clear and enforceable codes of ethics and conduct for judges to ensure their behavior is in line with the principles of justice and impartiality.
6. **Separation of Powers:**
    - The judiciary should be distinct and separate from the executive and legislative branches, ensuring a system of checks and balances.

7. **Judicial Review:**
    - The power of judicial review allows the judiciary to review and strike down actions of the executive or legislative branches that are unconstitutional. This power enhances the judiciary's independence.
8. **Public Confidence:**
    - The judiciary's independence is closely linked to public confidence. A judiciary that is perceived as independent is more likely to enjoy public trust and respect.
9. **Legal Protections:**
    - Legal provisions should protect judges from personal liability for their judicial acts, ensuring that they can make decisions without fear of personal repercussions.

Mechanisms to Ensure Independence:

1. **Appointment Commissions:**
    - Many countries have established independent commissions or collegiums responsible for judicial appointments. These bodies are often composed of judges, legal experts, and sometimes representatives from the executive.
2. **Security of Tenure Laws:**
    - Laws protecting the security of tenure for judges are essential. These laws may specify the conditions and processes for removal, ensuring that it is only for reasons of proven misconduct or incapacity.
3. **Financial Autonomy:**
    - Ensuring that the judiciary has financial autonomy prevents it from being financially beholden to the executive, which could potentially compromise its independence.
4. **Code of Conduct:**
    - Clear and enforceable codes of conduct for judges help maintain high ethical standards and prevent any behavior that may compromise their independence.
5. **Judicial Training and Education:**
    - Continuous training and education programs for judges can reinforce the importance of independence, ethics, and impartiality.
6. **Public Awareness and Advocacy:**
    - Building public awareness about the importance of judicial independence and advocating for its preservation can create a supportive environment for an independent judiciary.

Challenges to Judicial Independence:

1. **Political Interference:**
    - Political pressures or interference from the executive or legislative branches can pose a significant threat to judicial independence.
2. **Budgetary Constraints:**
    - Insufficient budgetary allocations can compromise the judiciary's ability to function independently.
3. **Delayed Justice:**
    - A backlog of cases and delays in the justice delivery system may affect public perception of the judiciary's effectiveness.
4. **Corruption:**
    - Instances of corruption within the judiciary can erode public trust and confidence in its independence.

Conclusion: Independence of the judiciary is a cornerstone of a democratic society and the rule of law. Safeguarding and strengthening judicial independence require a combination of legal protections, institutional mechanisms, and public awareness to ensure that the judiciary can fulfill its vital role in upholding justice and protecting rights.

3.3 Judicial accountability

Definition: Judicial accountability refers to the mechanisms and processes in place to ensure that judges are answerable for their actions, decisions, and conduct. It is a crucial aspect of maintaining public trust in the judiciary and upholding the principles of justice and the rule of law.

Key Aspects of Judicial Accountability:

1. **Code of Conduct:**
    - Establishing a comprehensive and enforceable code of conduct for judges that outlines ethical standards and behavioral expectations.
2. **Judicial Discipline:**
    - Instituting mechanisms to address instances of judicial misconduct or behavior that deviates from ethical standards.
3. **Complaints Mechanism:**
    - Establishing a transparent and accessible mechanism for filing complaints against judges, ensuring that individuals have a means to raise concerns about judicial conduct.
4. **Judicial Review:**
    - Allowing for judicial review of decisions, not only as a means of correcting errors of law but also as a check on potential abuses of power.
5. **Oversight Bodies:**
    - Creating independent oversight bodies or commissions responsible for investigating complaints against judges. These bodies may include judicial councils or similar entities.
6. **Public Scrutiny:**
    - Recognizing the importance of public scrutiny and ensuring that judicial proceedings, decisions, and conduct are subject to reasonable public scrutiny.
7. **Transparency:**
    - Promoting transparency in the functioning of the judiciary, including public access to information about judgments, proceedings, and decisions.
8. **Removal Proceedings:**
    - Establishing fair and impartial procedures for the removal of judges in cases of serious misconduct or incapacity. This may involve the role of the legislature in initiating removal proceedings.

Mechanisms Ensuring Judicial Accountability:

1. **Judicial Conduct Authorities:**
    - Some countries have established judicial conduct authorities or commissions tasked with investigating complaints against judges. These bodies can recommend disciplinary action if necessary.
2. **Judicial Councils:**
    - Judicial councils may be responsible for overseeing the conduct of judges and ensuring accountability. They may comprise both judicial and non-judicial members.
3. **Ombudsman for Judiciary:**
    - Some countries have established ombudsman offices specifically for the judiciary. These offices act as an independent body to investigate complaints against judges and recommend appropriate action.
4. **Public Complaint Mechanisms:**
    - Establishing accessible mechanisms for the public to file complaints against judges, ensuring that the process is fair, transparent, and free from retaliation.
5. **Parliamentary Oversight:**
    - In some jurisdictions, the legislature plays a role in judicial accountability, including initiating removal proceedings for judges in cases of proven misconduct.

6. **Media and Civil Society Monitoring:**
    - Media and civil society organizations play a crucial role in monitoring judicial conduct and decisions, holding judges accountable through public awareness and advocacy.

Challenges to Judicial Accountability:

1. **Judicial Independence Concerns:**
    - Balancing the need for accountability with the imperative of preserving judicial independence is a complex challenge.
2. **Political Interference:**
    - Political pressures or interference in the accountability process may compromise its fairness and impartiality.
3. **Lack of Transparency:**
    - Insufficient transparency in judicial proceedings and decisions can hinder public confidence in the accountability mechanisms.
4. **Delay in Proceedings:**
    - Delays in investigating and adjudicating complaints can undermine the effectiveness of accountability mechanisms.
5. **Limited Public Awareness:**
    - Limited public awareness about the mechanisms for judicial accountability may result in underutilization of these mechanisms.

3.4 National Judicial Appointments Commission.

The National Judicial Appointments Commission (NJAC) was a proposed constitutional body in India intended to replace the existing collegium system for the appointment and transfer of judges to the higher judiciary. However, it's important to note that my information might be outdated, and there may have been developments or changes since then.

National Judicial Appointments Commission (NJAC):

1. **Background:**

- The NJAC was proposed as a significant reform in the process of judicial appointments in India. The existing system, known as the collegium system, involved a body of judges (collegium) within the judiciary making recommendations for appointments and transfers of judges.

2. **Purpose:**

- The primary objective of the NJAC was to introduce greater transparency, accountability, and diversity in the process of appointing judges to the higher judiciary, which includes the Supreme Court and the High Courts.

3. **Composition of NJAC:**

- The NJAC was proposed to be a constitutional body comprising six members:
    - The Chief Justice of India (CJI), who would be the ex-officio Chairperson.
    - Two senior-most judges of the Supreme Court next to the CJI.
    - The Union Minister of Law and Justice.
    - Two eminent persons, to be nominated by the Prime Minister of India, the CJI, and the leader of the opposition in the Lok Sabha or the leader of the largest opposition party in the Lok Sabha.

4. Functions of NJAC:

- The NJAC was envisaged to recommend persons for appointment as Chief Justice of India, judges of the Supreme Court, Chief Justices of High Courts, and other judges of High Courts.

5. Controversy and Judicial Scrutiny:

- The proposed NJAC faced controversy and legal challenges. Critics raised concerns about the potential for political interference and dilution of judicial independence. The Supreme Court, in a landmark judgment in October 2015 (Supreme Court Advocates-on-Record Association v. Union of India), declared the NJAC unconstitutional and upheld the collegium system.

6. Impact:

- The rejection of the NJAC by the Supreme Court led to a reaffirmation of the collegium system, with subsequent discussions on judicial reforms and improving the collegium system itself.

MODULE 4:

4.1Emergency (Part XVIII)

a. **Types of Emergencies**

India's Constitution provides for three types of emergencies under Part XVIII, specifically in Articles 352, 356, and 360. Each type of emergency is meant to address different situations of crisis and allows for the temporary suspension of normal constitutional provisions. These emergencies are:

1. National Emergency (Article 352):

- **Proclamation Criteria:**
  - A national emergency can be proclaimed on the grounds of war, external aggression, or armed rebellion. The President has the authority to issue a proclamation if they are satisfied that the security of India or any part thereof is threatened by war or external aggression or armed rebellion.
- **Effect:**
  - During a national emergency, the federal structure of the country can be altered, and the President may assume certain powers. Fundamental Rights under Article 19 can be suspended, and the Executive (Union) can give directions to the states on various matters.
- **Duration:**
  - A national emergency must be approved by both houses of Parliament, and its proclamation is initially valid for two months. However, it can be extended indefinitely with parliamentary approval every six months.

2. President's Rule or State Emergency (Article 356):

- **Proclamation Criteria:**
  - President's Rule can be imposed in a state if the President, on receipt of a report from the Governor of the state or otherwise, is satisfied that the governance in the state cannot be carried out in accordance with the provisions of the Constitution.
- **Effect:**
  - During President's Rule, the state government is dismissed, and the Governor, who is appointed by the President, administers the state with the help of advisors. The legislative powers of the state are exercised by or under the authority of Parliament.
- **Duration:**
  - Initially, President's Rule is imposed for six months. It can be extended with parliamentary approval for a maximum period of three years.

3. Financial Emergency (Article 360):

- **Proclamation Criteria:**
  - A financial emergency can be declared if the President is satisfied that the financial stability or credit of India or any part thereof is threatened.
- **Effect:**
  - During a financial emergency, the President can issue directions for the reduction of salaries and allowances of all or any class of persons serving in connection with the affairs of the Union, including judges of the Supreme Court and High Courts. The President can also direct the reduction of the salaries and allowances of the Governors, the Speaker, the Deputy Speaker, and Ministers of the Union.
- **Duration:**
  - Like other emergencies, a financial emergency must be approved by both houses of Parliament. Its proclamation is initially valid for two months, but it can be extended indefinitely with parliamentary approval every six months.

Note: Emergency provisions are exceptional and are intended for use in extraordinary circumstances. They provide temporary powers to the executive but are subject to strict constitutional safeguards and parliamentary oversight to prevent misuse. The use of emergency powers is a serious matter and is expected to be exercised judiciously and sparingly.

b. Grounds for proclamation

Each type of emergency in India can be proclaimed under specific grounds mentioned in the Constitution. Here are the grounds for the proclamation of each type of emergency:

1. National Emergency (Article 352):

- A national emergency can be proclaimed on the grounds of:
    - War: External aggression or armed rebellion.
- The President must be satisfied that the security of India or any part thereof is threatened by war, external aggression, or armed rebellion before issuing a proclamation.

2. President's Rule or State Emergency (Article 356):

- President's Rule can be imposed in a state on the grounds of:
    - Failure of Constitutional Machinery: If the President is satisfied that a situation has arisen in which the government of the state cannot be carried on in accordance with the provisions of the Constitution.
- This situation may arise due to reasons such as the breakdown of the constitutional machinery in the state, political instability, or the inability of the state government to function according to constitutional norms.

3. Financial Emergency (Article 360):

- A financial emergency can be declared on the grounds of:
    - Threat to Financial Stability: If the President is satisfied that the financial stability or credit of India or any part thereof is threatened.
- This could be due to factors such as an economic crisis, a severe financial downturn, or circumstances that threaten the overall financial stability of the country.

Note: The declaration of emergencies is a serious constitutional step, and their proclamation is subject to careful consideration of the prevailing circumstances. The Constitution provides for these provisions to address exceptional situations and crises that pose a threat to the nation's security, governance, or financial stability. The declaration of emergencies also involves the necessary parliamentary approvals and oversight to prevent misuse and ensure accountability.

c. Consequences of Proclamation

The proclamation of emergencies in India, whether it be a National Emergency, President's Rule (State Emergency), or Financial Emergency, leads to specific consequences and alterations in the normal constitutional framework. Here are the consequences associated with each type of emergency:

1. National Emergency (Article 352):

- **Consequences:**
    1. **Centralization of Power:** The federal structure can be altered, leading to a significant centralization of power. The Union government gains authority over the states, and the President assumes certain powers.
    2. **Suspension of Fundamental Rights:** The President can suspend the operation of fundamental rights guaranteed by Article 19, except those related to protection in respect of conviction for offenses.
    3. **Modification of Constitutional Provisions:** The President can modify the constitutional provisions related to the distribution of revenues between the Union and the states.
    4. **Parliament's Authority:** Parliament is empowered to make laws on the State List (List II of the Seventh Schedule) during the emergency.

2. President's Rule or State Emergency (Article 356):

- **Consequences:**
    1. **Dismissal of State Government:** The elected government in the state is dismissed, and the Governor, appointed by the President, administers the state with the help of advisors.
    2. **Governor's Role:** The Governor exercises the powers of the state government on behalf of the President. The Governor can dissolve the state legislative assembly and order fresh elections.
    3. **Parliament's Authority:** Parliament can make laws on the subjects mentioned in the State List (List II of the Seventh Schedule) for the state.
    4. **Extension Period:** The initial period of President's Rule is for six months, but it can be extended with parliamentary approval to a maximum of three years.

3. Financial Emergency (Article 360):

- **Consequences:**
    1. **Salary Reduction:** The President can issue directions for the reduction of salaries and allowances of persons serving in connection with the affairs of the Union, including judges of the Supreme Court and High Courts.
    2. **Reduction of Salaries for Governors, etc.:** The President can direct the reduction of the salaries and allowances of the Governors, the Speaker, the Deputy Speaker, and Ministers of the Union.
    3. **Parliament's Authority:** The President can issue directions to the states to observe certain principles for the distribution of revenues between the Union and the states.
    4. **Extension Period:** Similar to a National Emergency, a Financial Emergency's proclamation is initially valid for two months but can be extended with parliamentary approval every six months.

Note: The consequences of emergency proclamations are temporary, and the normal constitutional order is restored once the emergency is revoked. These emergency provisions are intended to be used sparingly and in extraordinary circumstances to address threats to the nation's security, governance, or financial stability.

d. Judicial Review of proclamation of emergencies

The proclamation of emergencies in India is subject to judicial review, and the judiciary plays a crucial role in ensuring that the executive's exercise of emergency powers complies with constitutional principles. Here's how the judicial review of the proclamation of emergencies is conducted:

1. National Emergency (Article 352):

- **Judicial Review:**
    - The proclamation of a National Emergency under Article 352 is subject to judicial review by the Supreme Court.
    - The Supreme Court can examine the grounds on which the President proclaimed the emergency and determine whether those grounds meet the constitutional criteria.
- **Scope of Review:**
    - The Supreme Court can inquire into the existence of facts and circumstances justifying the proclamation. If the Court finds that the emergency was proclaimed without valid grounds, it has the authority to strike down the proclamation.
- **Duration of Emergency:**
    - The continuance of the emergency is also subject to judicial review. The Court can examine whether the conditions justifying the emergency persist and can direct the revocation of the emergency if those conditions cease to exist.

2. President's Rule or State Emergency (Article 356):

- **Judicial Review:**
  - The imposition of President's Rule in a state is subject to judicial review by the courts, particularly the High Court and the Supreme Court.
  - The affected state's High Court can examine the imposition of President's Rule to ensure that the grounds for such action are valid.
- **Scope of Review:**
  - The courts can inquire into whether the breakdown of the constitutional machinery in the state was genuine and whether the imposition of President's Rule was justified under the circumstances.
- **Duration of President's Rule:**
  - The courts can also review the continuation of President's Rule and ensure that the conditions warranting such intervention persist. If the circumstances change, the courts may direct the revocation of President's Rule.

3. Financial Emergency (Article 360):

- **Judicial Review:**
  - The proclamation of a Financial Emergency is subject to judicial review by the courts, particularly the Supreme Court.
  - The Supreme Court can examine the grounds on which the President proclaimed the Financial Emergency and determine whether those grounds meet the constitutional criteria.
- **Scope of Review:**
  - The Court can inquire into whether the financial stability or credit of India or any part thereof was genuinely threatened, justifying the imposition of a Financial Emergency.
- **Duration of Emergency:**
  - The continuance of the Financial Emergency is also subject to judicial review. The Court can examine whether the conditions justifying the emergency persist and can direct the revocation of the emergency if those conditions cease to exist.

Note: Judicial review ensures that the exercise of emergency powers is in accordance with the Constitution and that the rights of individuals are not unduly curtailed. The courts serve as a check on the executive, providing a safeguard against misuse or arbitrary use of emergency provisions.

4.2 Amendment and the basic structure doctrine (Part XX)

a. Amendment Process:

- The procedure for amending the Constitution of India is outlined in Part XX, specifically in Articles 368.
- Parliament has the power to amend the Constitution, but certain types of amendments require a special majority, and some amendments also need ratification by the states.

b. Types of Amendments:

- There are two types of amendments:
  1. **Simple Majority Amendments:** These can be passed by a simple majority in both houses of Parliament.
  2. **Special Majority Amendments:** These require a two-thirds majority of the members present and voting, as well as a majority of the total membership in each house of Parliament. Additionally, some amendments may need ratification by a majority of the states.

c. Judicial Review of Amendments:

- While Parliament has the power to amend the Constitution, the Supreme Court has the authority to review and strike down amendments that violate the basic structure of the Constitution.

Basic Structure Doctrine:

a. Origin:

- The Basic Structure Doctrine originated from the landmark case of *Kesavananda Bharati v. State of Kerala* (1973). In this case, the Supreme Court held that while Parliament has the power to amend the Constitution, it does not have the power to destroy or abrogate its basic structure.

b. Basic Structure Defined:

- The Basic Structure refers to the core principles and features of the Constitution that form its foundation. These are considered essential and cannot be altered or destroyed by amendments.

c. Judicial Review and Basic Structure:

- The Supreme Court has the authority to review constitutional amendments and determine whether they violate the basic structure of the Constitution.
- If an amendment is found to violate the basic structure, the Court can declare it unconstitutional.

d. Examples of Basic Structure:

- The Supreme Court has identified certain features as part of the basic structure, including:
    1. Judicial Review.
    2. Federalism.
    3. Secularism.
    4. Democracy.
    5. Rule of Law.
    6. Separation of Powers.
    7. Parliamentary System.

e. Limitations:

- The Basic Structure Doctrine does not provide an exhaustive list of features but sets broad principles. The Court may evolve and recognize new elements as part of the basic structure over time.

f. Significance:

- The Basic Structure Doctrine acts as a safeguard against arbitrary changes to the Constitution and protects its foundational principles. It ensures the enduring nature of the core values that define the Indian constitutional framework.

Conclusion: The amendment process in Part XX of the Constitution grants Parliament the authority to modify the Constitution, but the Basic Structure Doctrine, as established by judicial review, acts as a check to prevent amendments that would fundamentally alter the core principles and features of the Constitution. This delicate balance between parliamentary power and the protection of constitutional fundamentals contributes to the stability and continuity of India's constitutional framework.

4.3Constitutional Bodies and Offices

a. Services (Part-XIV, Chap-1)

In India, the provisions related to services under the Constitution are primarily outlined in Part XIV, Chapter 1. This part deals with the services under the Union and the States. Let's delve into the key aspects:

1. Constitutional Provisions:

- **Article 308:** Authority of the President to regulate recruitment and conditions of service of persons serving the Union or a State.

2. All India Services:

- The Constitution provides for the creation of All India Services, which include the Indian Administrative Service (IAS), Indian Police Service (IPS), and Indian Forest Service (IFS). These services are shared by the Union and the States and aim to foster uniform administrative standards across the country.
- **Article 312:** Empowers the Rajya Sabha to declare certain services to be All India Services, provided that it is supported by a resolution passed by not less than two-thirds of the members present and voting.
- **Article 313:** Provides for the continuance of All India Services as common to the Union and the States.

3. Public Service Commissions:

- The Constitution establishes Public Service Commissions at the Union and State levels. These commissions are responsible for conducting examinations for recruitment to various services and advising the President or Governor on disciplinary matters.
- **Article 315 to 323:** Outlines the provisions related to Public Service Commissions, including their composition, appointment, and functions.

4. Tenure and Conditions of Service:

- The Constitution empowers the President to regulate the recruitment and conditions of service of persons serving the Union or a State.
- **Article 310:** Provides for the tenure of office of persons serving the Union or a State, which is at the pleasure of the President or the Governor, as the case may be.
- **Article 311:** Safeguards the rights of public servants by providing for certain protections, such as a reasonable opportunity to be heard in disciplinary matters.

5. Other Provisions:

- **Article 309:** Grants the power to the appropriate Legislature (Parliament or State Legislature) to make laws regulating the recruitment and conditions of service of persons appointed to public services and posts.
- **Article 312:** Deals with the power of the President to determine the conditions of service of persons serving in connection with the affairs of the Union or holding posts in connection with the affairs of a State.

Conclusion: The constitutional provisions related to services play a crucial role in defining the structure and functioning of public services in India. The creation of All India Services and the establishment of Public Service Commissions are integral components aimed at ensuring efficiency, fairness, and uniformity in the recruitment and conditions of service for government employees across the country.

b. UPSC and State Public Service Commission (Part-XIV, Chap-2)

The Constitution of India, under Part XIV, Chapter 2, establishes the Union Public Service Commission (UPSC) at the national level and State Public Service Commissions (SPSC) at the state level. These bodies play a vital role in the recruitment, appointments, and advice related to civil services in the Union and the States.

1. Union Public Service Commission (UPSC):

- **Article 315 to 323:** Outlines the provisions related to UPSC.
- **Composition:**
  - The UPSC is constituted by the President of India.
  - It consists of a Chairman and other members appointed by the President.

- **Appointment and Term:**
  - The members of the UPSC hold office for a term of six years or until they attain the age of 65, whichever is earlier.
  - They can be reappointed or serve in other capacities after their term.
- **Functions:**
  - Conducting examinations for recruitment to All India Services and Central Services.
  - Advising the President on disciplinary matters.
  - Presenting annual reports to the President on the work done by the Commission.
- **Independence:**
  - The UPSC is an independent constitutional body, and its members are not eligible for further employment under the government once they have completed their term.

2. State Public Service Commissions (SPSC):

- **Article 315 to 323A:** Outlines the provisions related to SPSC.
- **Composition:**
  - Each state has its own Public Service Commission, and the Governor of the state constitutes it.
  - It consists of a Chairman and other members appointed by the Governor.
- **Appointment and Term:**
  - The members of the SPSC hold office for a term of six years or until they attain the age of 62, whichever is earlier.
  - They can be reappointed or serve in other capacities after their term.
- **Functions:**
  - Conducting examinations for recruitment to services in the state.
  - Advising the Governor on disciplinary matters.
  - Presenting annual reports to the Governor on the work done by the Commission.
- **Independence:**
  - Similar to the UPSC, the SPSC is an independent constitutional body, and its members are not eligible for further employment under the state government once they have completed their term.

3. Combined State and Subordinate Services Examination:

- SPSCs are responsible for conducting examinations, such as the Combined State and Subordinate Services Examination, to select candidates for various state services.

4. Removal and Suspension:

- The Constitution provides for the removal and suspension of members of both UPSC and SPSC on specific grounds mentioned in Article 317.

Conclusion: UPSC and SPSCs are constitutional bodies entrusted with the responsibility of conducting examinations for the recruitment of civil servants at the national and state levels, respectively. They play a crucial role in maintaining the efficiency, transparency, and impartiality of the recruitment process for civil services in India.

c. Election Commission of India (Part-XV)

The Election Commission of India (ECI) is a constitutional body established under Part XV of the Constitution of India. It plays a crucial role in ensuring free and fair elections in the country.

1. Constitutional Provisions:

- **Article 324:** Outlines the provisions related to the Election Commission.

2. Composition:

- The Election Commission consists of the Chief Election Commissioner (CEC) and such number of Election Commissioners as the President may determine.

- As of my last knowledge update in January 2022, the norm has been to have one Chief Election Commissioner and two Election Commissioners. However, the President has the discretion to determine the number of Election Commissioners.
- The President appoints the Chief Election Commissioner and Election Commissioners.

3. Independence:

- The Constitution provides for the independence of the Election Commission to ensure impartiality in the conduct of elections.
- Once appointed, the Chief Election Commissioner and Election Commissioners can only be removed by the President on the grounds and in the manner specified in Article 324(5).

4. Functions:

- The primary functions of the Election Commission include:
    - Conducting elections to the Lok Sabha, Rajya Sabha, State Legislative Assemblies, and offices of the President and Vice President.
    - Preparing electoral rolls and revising them from time to time.
    - Determining the territorial constituencies for elections and delimiting them.
    - Granting recognition to political parties and allotting symbols to them.
    - Implementing the Model Code of Conduct during elections to ensure fair play and adherence to ethical standards.

5. Conduct of Elections:

- The Election Commission is responsible for the entire process of conducting elections, including the announcement of election schedules, the monitoring of campaigning, and the counting of votes.
- The Election Commission works to ensure that elections are conducted in a free, fair, and transparent manner.

6. Independence and Autonomy:

- The independence and autonomy of the Election Commission are crucial to its functioning. Its decisions are expected to be free from political interference to maintain the integrity of the electoral process.

7. Removal and Conditions of Service:

- The conditions of service and tenure of office of the Chief Election Commissioner and Election Commissioners are determined by the President.
- The Chief Election Commissioner and Election Commissioners can be removed from office only in the manner and on the grounds mentioned in Article 324(5), which provides for the same procedure as the removal of a Supreme Court judge.

Conclusion:

The Election Commission of India plays a pivotal role in upholding the democratic principles of the country by conducting free and fair elections. Its independence, autonomy, and impartiality are essential to ensure the credibility of the electoral process and maintain public trust in the democratic institutions of India.

d. Attorney General and Advocate Generals (Relevant Chapters from Part-V and Part-VI)

The Constitution of India provides for the roles of the Attorney General of India and the Advocate Generals of States in Part V and Part VI, respectively.

1. Attorney General of India (Part V - The Union):

- **Article 76:** Outlines the provisions related to the Attorney General of India.
- **Appointment and Term:**
    - The President appoints the Attorney General of India.
    - The Attorney General holds office during the pleasure of the President.
- **Functions:**
    - The Attorney General is the chief legal advisor to the Government of India.

    - They have the right of audience in all courts in India and can participate in the proceedings of both houses of Parliament without the right to vote.
- **Independence:**
    - The Attorney General is not a full-time government servant, and the nature of their duties allows for a certain degree of independence from the government.

2. Advocate Generals (Part VI - The States):
- **Article 165:** Outlines the provisions related to the Advocate General for the State.
- **Appointment and Term:**
    - The Governor appoints the Advocate General for the State.
    - The Advocate General holds office during the pleasure of the Governor.
- **Functions:**
    - The Advocate General is the chief legal advisor to the government of the state.
    - Similar to the Attorney General, the Advocate General has the right of audience in all courts in the state and can participate in the proceedings of the state legislature without the right to vote.
- **Independence:**
    - Like the Attorney General, the Advocate General is not a full-time government servant, and the nature of their duties allows for a certain degree of independence.

3. Role and Responsibilities:
- Both the Attorney General and the Advocate Generals play a crucial role in providing legal advice to the government and representing the government in legal matters.
- They assist the government in understanding the legal implications of its actions and represent the government's interests in courts.

4. Independence and Professional Ethics:
- While these legal officers serve the government, they are expected to uphold professional ethics and maintain a certain level of independence in providing legal advice.
- Their duties include representing the legal interests of the government without compromising the principles of justice and fairness.

Conclusion:

The positions of Attorney General of India and Advocate Generals are integral to the legal framework of both the Union and the States. These legal officers provide valuable legal advice to the government, represent the government in legal proceedings, and contribute to upholding the rule of law and justice. Their roles involve balancing the interests of the government with the principles of justice and fairness.

e. Comptroller and Auditor General of India (Chapter-V, Part-V)

The Comptroller and Auditor General of India (CAG) is a constitutional office created under Chapter V, Part V of the Constitution of India. The CAG plays a crucial role in ensuring financial accountability and transparency in the functioning of the government.

1. Constitutional Provisions:
- **Article 148 to 151:** Outlines the provisions related to the Comptroller and Auditor General of India.

2. Appointment and Independence:
- The President of India appoints the CAG.
- The CAG is an independent authority and is not subject to control by any executive authority.
- The conditions of service and tenure of office of the CAG are determined by the President.

3. Functions:
- **Audit of Public Accounts:**
    - The CAG audits all receipts and expenditure from the Consolidated Fund of India and the Consolidated Fund of each state.

- **Audit of Receipts:**
    - The CAG audits all transactions of the Union and state governments related to the contingency funds and public accounts.
- **Performance Audit:**
    - Apart from financial audits, the CAG also conducts performance audits to evaluate the efficiency and effectiveness of government programs.

4. Report to the President and Governors:
- The CAG submits reports to the President in the case of the Union and to the Governors in the case of states.
- These reports are then laid before Parliament or the State Legislature, as the case may be.

5. Independence and Accountability:
- The CAG is independent in the performance of their duties and functions.
- The reports of the CAG draw attention to instances of financial irregularities, inefficiencies, or other matters that require corrective action.

6. Role in Financial Oversight:
- The CAG plays a crucial role in the financial oversight of the government, ensuring that public funds are spent efficiently and in accordance with the law.
- The CAG's reports are instrumental in holding the government accountable to Parliament and the public.

7. Removal and Resignation:
- The CAG can be removed from office only on the grounds of proven misbehavior or incapacity.
- The process of removal is the same as that of a Supreme Court judge.

Conclusion:

The Comptroller and Auditor General of India, as an independent constitutional authority, contributes significantly to ensuring financial accountability and transparency in the functioning of the government. The CAG's audits and reports serve as a critical mechanism for holding the government accountable and maintaining the integrity of financial management in the country.

f. Finance Commission (Art. 280, Art-281)

The Finance Commission is a constitutional body established under Article 280 of the Constitution of India. Its primary role is to recommend the distribution of financial resources between the Union and the States and among the States themselves.

1. Constitutional Provisions:
- **Article 280:** Outlines the provisions related to the Finance Commission.

2. Composition:
- The President appoints the Finance Commission, and it consists of a Chairman and four other members.
- The members of the Finance Commission are appointed for a specific term, as specified by the President.

3. Functions:
- The primary functions of the Finance Commission include:
    - Making recommendations to the President regarding the distribution of the net proceeds of taxes between the Union and the States.
    - Determining the principles governing the grants-in-aid to States that need assistance from the Centre.
    - Recommending measures to augment the Consolidated Fund of a State to supplement the resources of the Panchayats and Municipalities in the state.
- The Commission also examines and recommends any other matter referred to it by the President in the interest of sound finance.

4. Recommendations:

- The recommendations of the Finance Commission are binding on the government.
- These recommendations are typically presented in the form of a report, and the government tables this report in both houses of Parliament.

5. Periodicity:

- The Finance Commission is appointed at intervals specified by the President.
- The recommendations of the Finance Commission cover a specific period, usually five years.

6. Grants-in-Aid:

- The Finance Commission recommends the distribution of grants-in-aid to states based on certain criteria, including population, area, revenue, and fiscal capacity.

7. Article 281:

- **Article 281:** Provides for the authorization of advances out of the Contingency Fund of India and the creation of specific funds for the states that are in need of assistance.
- The advances are made on the recommendations of the Finance Commission.

8. Significance:

- The Finance Commission plays a critical role in maintaining fiscal federalism by ensuring an equitable distribution of financial resources between the Union and the States.
- It helps address regional imbalances and provides for the needs of the States, especially those with lower fiscal capacities.

Conclusion:

The Finance Commission is a vital constitutional body that contributes to the effective functioning of fiscal federalism in India. Its recommendations play a crucial role in ensuring a fair distribution of financial resources, promoting cooperative federalism, and addressing the diverse fiscal needs of the states.

g. National Commissions for SC, ST and Backward Classes (Art.338, Art.338-A, Art.338-B)

The Constitution of India provides for the establishment of National Commissions for Scheduled Castes (SC), Scheduled Tribes (ST), and Backward Classes to safeguard their interests and promote their welfare. The relevant constitutional provisions are outlined in Article 338, Article 338-A, and Article 338-B.

1. National Commission for Scheduled Castes (Article 338):

- **Article 338:** Outlines the provisions related to the National Commission for Scheduled Castes.
- **Composition:**
  - The President appoints a Commission to investigate and monitor all matters relating to the constitutional safeguards for Scheduled Castes.
- **Functions:**
  - The Commission is tasked with investigating and monitoring the implementation of various safeguards provided for Scheduled Castes.
  - It submits reports to the President regarding the measures for the effective implementation of these safeguards.

2. National Commission for Scheduled Tribes (Article 338-A):

- **Article 338-A:** Introduces provisions related to the National Commission for Scheduled Tribes.
- **Composition:**
  - Similar to the National Commission for Scheduled Castes, the President appoints a Commission to investigate and monitor all matters relating to the constitutional safeguards for Scheduled Tribes.
- **Functions:**

- The Commission examines and monitors the implementation of the safeguards for Scheduled Tribes.
- It submits reports to the President on the measures needed to improve the implementation of these safeguards.

3. National Commission for Backward Classes (Article 338-B):

- **Article 338-B:** Provides for the National Commission for Backward Classes.
- **Composition:**
  - The President appoints a Commission to investigate and monitor all matters relating to the constitutional safeguards for Other Backward Classes (OBCs).
- **Functions:**
  - The Commission examines and monitors the implementation of the safeguards for Backward Classes.
  - It submits reports to the President on the measures needed to improve the implementation of these safeguards.

4. Autonomy and Independence:

- These Commissions are independent authorities, and their recommendations are aimed at protecting the interests of the respective communities without external interference.

5. Reports to the President:

- The reports submitted by these Commissions to the President are important in highlighting the status of the implementation of safeguards and suggesting measures for improvement.

6. Role in Social Justice:

- The National Commissions for SC, ST, and Backward Classes play a crucial role in promoting social justice and ensuring that the constitutional safeguards for these communities are effectively implemented.

Conclusion:

The establishment of National Commissions for Scheduled Castes, Scheduled Tribes, and Backward Classes reflects the commitment of the Constitution to promoting the welfare and safeguarding the interests of marginalized communities. These Commissions play a pivotal role in monitoring the implementation of constitutional safeguards and advocating for measures to address the challenges faced by these communities.

4.4Inter-state Trade and Commerce (Part-XIII)

a. **Freedom of trade, commerce and inter course**

a. Freedom of Trade, Commerce, and Intercourse (Article 301):

1. Constitutional Provisions:

- **Article 301:** Forms the basis for the freedom of trade, commerce, and intercourse throughout the territory of India.

2. Meaning of Article 301:

- Article 301 embodies the principle of economic unity and common market for the entire nation.
- It aims to facilitate the free flow of trade, commerce, and intercourse across state boundaries, promoting economic integration.

3. Restrictions on Freedom (Article 302 - Article 305):

- **Article 302:** Allows the Parliament to impose restrictions on the freedom of trade, commerce, and intercourse in the public interest.
- **Article 303:** Specifies that no law of a state shall impose restrictions on the freedom of trade, commerce, and intercourse with other states.
- **Article 304:** Allows a state to impose restrictions on trade, commerce, and intercourse for reasons of public interest, but such laws require the President's approval.
- **Article 305:** Saves existing laws providing for State monopoly in trade or industry, from being invalidated on the ground of violation of Article 301.

4. Interpretation by the Courts:

- The Supreme Court has interpreted Article 301 expansively, emphasizing the need for a broad and liberal construction to achieve the constitutional objective of economic unity.
- The Court has clarified that the freedom under Article 301 is not limited to movement across borders but includes the freedom of trade and commerce within the territorial limits of each state.

5. Doctrine of Discrimination (Article 304):

- Article 304 allows a state to impose restrictions on the freedom of trade for reasons of public interest, but it requires the President's approval.
- The state laws, however, should not discriminate against the goods or services of other states.

6. Harmonization of State Laws:

- While recognizing the power of states to impose restrictions for public interest, the Constitution encourages harmonization of state laws to avoid conflicts that may impede the free flow of trade.

7. Judicial Perspective:

- The judiciary plays a crucial role in interpreting and ensuring the application of these provisions, balancing the need for economic unity with the right of states to regulate in public interest.

Conclusion:

Article 301, along with the related provisions, establishes the principle of a common market within India. While recognizing the power of states to regulate trade in the public interest, the Constitution aims to create a unified economic space where the movement of goods, services, and people is facilitated for the overall economic development of the country. The interplay of these constitutional provisions reflects the delicate balance between economic integration and the autonomy of states in regulating trade and commerce.

b. Restrictions on the freedom

Restrictions on the Freedom (Article 302 - Article 305):

The freedom of trade, commerce, and intercourse guaranteed by Article 301 is not absolute. The Constitution allows for certain restrictions to be imposed in the interest of public welfare and other specified reasons. The relevant provisions dealing with restrictions are outlined in Article 302 to Article 305.

1. Article 302: Parliament's Power to Impose Restrictions:

- **Article 302:** Grants the Parliament the power to impose restrictions on the freedom of trade, commerce, and intercourse in the public interest.
- This power is broad and is intended to ensure that the economic interests of the nation are safeguarded.

2. Article 303: Restrictions on States' Legislative Powers:

- **Article 303:** Specifies that no law of a state shall impose restrictions on the freedom of trade, commerce, and intercourse with other states.
- This provision is crucial in preventing states from enacting laws that might create barriers to the free flow of goods and services across state boundaries.

3. Article 304: Power of States to Impose Restrictions:

- **Article 304(a):** Allows a state to impose restrictions on trade, commerce, and intercourse for reasons of public interest. However, such laws require the President's approval.
- **Article 304(b):** Permits a state to impose reasonable restrictions on trade, commerce, and intercourse if there is a scarcity of goods in the state. In such cases, the state law does not require the President's approval.

4. Doctrine of Discrimination:

- While Article 304 allows states to impose restrictions for public interest, it incorporates the "doctrine of discrimination," ensuring that such laws do not discriminate against the goods or services of other states.

5. Article 305: Saving of Existing Laws:

- **Article 305:** Provides a saving clause for existing laws providing for State monopoly in trade or industry. These laws are saved from being invalidated on the ground of violating Article 301.

6. Balancing Economic Unity and State Autonomy:

- The constitutional framework strikes a balance between the goal of economic unity and the autonomy of states to regulate trade and commerce in specific situations, primarily in the interest of public welfare.

7. Judicial Review:

- The judiciary plays a significant role in interpreting and reviewing laws related to trade and commerce. Courts ensure that restrictions imposed by Parliament or states are reasonable, non-discriminatory, and in the public interest.

Conclusion:

The provisions from Article 302 to Article 305 reflect the constitutional framework for imposing restrictions on the freedom of trade, commerce, and intercourse. While recognizing the need for certain restrictions in the interest of public welfare, the Constitution ensures that these restrictions are reasonable, non-discriminatory, and do not impede the overall goal of economic unity within the nation. Judicial review further ensures the constitutional validity of such restrictions.

4.5 Co-operative Societies (Part-IX-B)

1. Constitutional Provisions:

- **Article 243ZK to Article 243ZT:** Contain provisions related to co-operative societies and are a part of Part IXB of the Constitution.

2. Background:

- Part IXB was inserted into the Constitution by the 97th Amendment Act, 2011.
- The objective is to empower and strengthen co-operative societies by providing a constitutional framework for their governance at the grassroots level.

3. Key Features:

- **Incorporation and Regulation:**
  - Article 243ZK empowers the Legislature of a State to make provisions for the incorporation, regulation, and winding up of co-operative societies based on the principles laid down in the Constitution.
- **Conduct of Elections:**
  - Article 243ZL provides for the conduct of elections to co-operative societies.
- **Reservation of Seats:**
  - Article 243ZM allows the Legislature to provide for reservations in the matters of elections and representation of the Scheduled Castes, the Scheduled Tribes, and women in co-operative societies.
- **Supersession of Boards:**
  - Article 243ZN empowers the Legislature to provide for the supersession of the Board of a co-operative society.
- **Audit of Accounts:**
  - Article 243ZO authorizes the Legislature to make provisions for the maintenance of accounts by co-operative societies and the audit of such accounts.
- **Submission of Annual Reports:**
  - Article 243ZP requires the Legislature to make provisions for the submission of an annual report on the working of co-operative societies to the Legislature.

- **Constitution of Tribunals:**
  - Article 243ZQ allows the Legislature to constitute tribunals for the settlement of disputes and complaints related to co-operative societies.
- **Exemption from Taxation:**
  - Article 243ZR provides that no law made by the Legislature relating to co-operative societies shall be deemed to be invalid on the ground that it relates to the incorporation, regulation, and winding up of co-operative societies.

4. Empowering Local Self-Governments:

- The provisions in Part IXB aim to strengthen local self-governments by providing a constitutional framework for the governance of co-operative societies at the grassroots level.
- The intention is to promote the autonomy and democratic functioning of co-operative societies for economic development at the local level.

5. Implementation by States:

- The effectiveness of these constitutional provisions depends on the specific laws enacted by the States to implement the principles outlined in Part IXB.

6. Challenges and Opportunities:

- The implementation of co-operative society provisions faces challenges but also presents opportunities for fostering local economic development and empowerment.

The End

Paper/CONSTITUTIONAL LAW – II / Other University

1. **(a) Discuss the Constitutional position of the Governor of a State.**

The Constitutional position of the Governor of a State is a crucial aspect within the framework of India's federal structure. The role and powers of the Governor are defined in the Indian Constitution under Articles 153 to 167. These provisions delineate the Governor's powers, functions, and responsibilities, ensuring a balance between the executive authority of the State and the overarching authority of the Union.

Article 153 establishes the office of the Governor in each state and designates them as the head of the state. However, it's important to note that the Governor acts as the representative of the President of India at the state level. This means that while the Governor exercises powers on behalf of the President, they are not an independent executive authority.

One of the primary functions of the Governor is to ensure the smooth functioning of the state machinery. They play a pivotal role in the appointment of the Chief Minister, who is usually the leader of the majority party in the state legislature. The Governor also appoints other members of the Council of Ministers on the advice of the Chief Minister.

Article 163 outlines the discretionary powers of the Governor. While the Governor is expected to act on the aid and advice of the Council of Ministers, there are situations where the Governor can use discretion. However, this discretion is not unfettered, and it must be exercised in accordance with the provisions laid down by the Constitution.

To illustrate the Constitutional position of the Governor, let's delve into the landmark case of **Shamsher Singh v. State of Punjab (1974)**. In this case, the Supreme Court of India clarified the extent of the Governor's discretionary powers. The court emphasized that the Governor should exercise discretion only in exceptional circumstances and must be guided by constitutional principles. This case highlighted the importance of maintaining a balance between the executive powers of the Governor and the democratic principles enshrined in the Constitution.

Furthermore, the Governor plays a crucial role in the legislative process. They summon and prorogue the state legislature, and their assent is required for bills to become law. The Governor also has the power to reserve certain bills for the consideration of the President.

In the context of your legal studies, understanding the Constitutional position of the Governor involves a nuanced analysis of various articles and judicial precedents. It requires a comprehensive review of the powers conferred upon the Governor and the delicate balance that must be maintained between the executive and legislative branches of the state government.

In conclusion, the Constitutional position of the Governor is a vital component of India's federal structure. Through an in-depth study of relevant articles and judicial pronouncements, one can appreciate the complexities and nuances associated with this office. The case study mentioned provides a practical insight into the application of constitutional principles, further enriching your understanding of this important aspect of Constitutional law.

Please note that the information provided here is a general overview, and it is recommended to refer to specific legal texts, court judgments, and academic resources for a more detailed and nuanced understanding of the Constitutional position of the Governor.

(b) Compare and contrast the pardoning power of the President with that of the Governor of a State.

The pardoning power vested in the President of India and the Governor of a State is a significant aspect of the executive authority within the Indian constitutional framework. The powers are enshrined in Articles 72 and 161 of the Constitution, respectively, and understanding the similarities and differences between these powers is essential for a comprehensive study of constitutional law.

Similarities:

1. **Constitutional Origin:** Both the President's and Governor's pardoning powers find their constitutional basis. Article 72 empowers the President, while Article 161 confers similar powers upon the Governor.
2. **Executive Clemency:** Both offices have the authority to grant pardons, reprieves, respites, or remissions of punishment or to suspend, remit or commute the sentence of a person convicted of an offense.
3. **Advisory Role:** In both cases, the President and the Governor exercise their pardoning powers on the aid and advice of the Council of Ministers. They do not act independently but rather rely on the recommendations provided by the executive branch.

Differences:

1. **Scope of Application:** While the President's pardoning power extends to offenses under Union laws or offenses tried in a Union Territory, the Governor's power is limited to offenses against state laws or offenses tried within the boundaries of the respective state.
2. **Clemency in Death Penalty Cases:** The President has the authority to grant pardons, reprieves, or respites even in cases involving the death penalty. However, the Governor's power in this regard is limited. The Governor can only suspend, remit, or commute death sentences, and the final decision rests with the President.
3. **Remission and Commutation of Sentences:** The extent and manner in which remission and commutation of sentences are exercised may vary between the President and the Governor. The President, in exercising the power under Article 72, can grant pardons, reprieves, respites, remissions, or commutations for sentences. On the other hand, the Governor, under Article 161, has the power to grant pardons, reprieves, respites, or remissions of punishment, but the power of commutation is not explicitly mentioned.
4. **Advisory Authority:** While both the President and the Governor act on the advice of their respective Council of Ministers, the scope of advice may differ due to the distinct jurisdiction of Union and State laws. The President may receive advice from the Union Council of Ministers, while the Governor's advice comes from the State Council of Ministers.

To illustrate the nuanced application of these powers, let's consider the case of **Kehar Singh v. Union of India (1989)**. In this case, the Supreme Court upheld the President's power to grant clemency but clarified that the power is not absolute and should be exercised in accordance with constitutional principles. This decision underscores the delicate balance between the executive's authority and the need for adherence to constitutional values.

In your pursuit of legal expertise, a detailed analysis of these constitutional provisions, coupled with an examination of relevant judicial precedents, is essential. Understanding the distinctions between the pardoning powers of the President and the Governor will provide you with a deeper insight into the intricate workings of the Indian legal system.

2. **(a) "The Prime Minister is the keystone of the cabinet arch". Do you agree? Give reasons for your answer.**

The statement "The Prime Minister is the keystone of the cabinet arch" holds substantial merit, and its accuracy is reflected in the constitutional and political dynamics of parliamentary systems, including India. Several reasons support this assertion, emphasizing the pivotal role played by the Prime Minister in the functioning of the cabinet.

1. Leadership and Decision-Making:

- The Prime Minister is typically the leader of the political party that secures the majority in the parliamentary elections. As such, they become the natural choice for the position of the head of the government.
- The Prime Minister's leadership is crucial in providing a clear direction to the government's policies and decisions. Their ability to make informed and timely decisions is essential for effective governance.

2. Policy Formulation:

- The Prime Minister plays a central role in the formulation of policies. They often set the agenda for the government and guide the cabinet in developing strategies and initiatives.
- The vision and priorities articulated by the Prime Minister shape the overall policy framework of the government, influencing both domestic and foreign policies.

3. Coordination of Ministries:

- The cabinet consists of various ministries, each headed by a minister. The Prime Minister acts as a coordinator, ensuring that the different ministries work cohesively towards common goals.
- Effective coordination is vital for the smooth functioning of the government and the implementation of policies across diverse sectors.

4. Parliamentary Representation:

- The Prime Minister is the principal representative of the government in the parliament. They are responsible for presenting and defending government policies, responding to questions, and engaging in parliamentary debates.
- The Prime Minister's performance in parliament directly impacts the government's stability and effectiveness.

5. International Representation:

- On the international stage, the Prime Minister represents the country and is often the key diplomatic figure. They engage in diplomatic missions, attend international summits, and negotiate treaties on behalf of the nation.
- The Prime Minister's role in international affairs contributes to the country's standing in the global community.

6. Cabinet Appointments:

- The Prime Minister has the authority to appoint and dismiss ministers within the cabinet. This power allows them to assemble a team that aligns with their vision and policy objectives.
- The ability to shape the composition of the cabinet enhances the Prime Minister's influence on government functioning.

7. Crisis Management:

- During times of crisis or emergencies, the Prime Minister assumes a crucial role in providing leadership and direction. Their ability to manage crises effectively is essential for maintaining public trust and confidence

(b) What is meant by 'Collective Responsibility' of the Ministers?

The concept of 'Collective Responsibility' refers to the principle that members of a cabinet, including ministers, collectively share the responsibility for the decisions and policies of the government. It is a fundamental feature of parliamentary systems of government, where the cabinet operates as a cohesive unit, and individual ministers are accountable not only for their specific portfolios but also for the overall functioning and decisions of the government.

Key aspects of Collective Responsibility include:

1. Cabinet Solidarity:

- Ministers are expected to publicly support the decisions and policies adopted by the cabinet, even if they may have had differing opinions during internal discussions. This presents a united front to the public and ensures that the government speaks with one voice.

2. Decisions as Collective Actions:

- Once a decision is made by the cabinet, it is considered a collective action, and all ministers are bound by it. Individual ministers cannot disassociate themselves from the decisions taken by the majority of the cabinet.

3. Public Accountability:

- Collective Responsibility enhances the accountability of the entire cabinet to the parliament and, by extension, to the public. Ministers are collectively accountable for the successes and failures of the government's policies.

4. Resignation in Dissent:

- In cases where a minister strongly disagrees with a cabinet decision, the principle of Collective Responsibility may necessitate their resignation. By resigning, the minister upholds their personal principles while respecting the collective nature of cabinet responsibility.

5. Confidence of the Parliament:

- The government's ability to maintain the confidence of the parliament relies on the principle of Collective Responsibility. If the cabinet is divided or if individual ministers publicly contradict government policies, it can undermine the stability and credibility of the government.

6. Policy Consistency:

- Collective Responsibility ensures a consistent and coherent approach to governance. It prevents ministers from pursuing divergent policies or publicly expressing conflicting views, promoting a sense of unity within the government.

7. Constitutional Convention:

- While the principle of Collective Responsibility may not always be explicitly mentioned in a country's constitution, it is often considered a constitutional convention, a well-established practice integral to the working of parliamentary democracies.

Understanding the concept of Collective Responsibility is crucial for law students, especially those studying constitutional and administrative law. It forms the basis for the functioning of the executive branch of government and is deeply connected to principles of parliamentary democracy.

A notable example illustrating the significance of Collective Responsibility is the famous resignation of several ministers in the British government led by Prime Minister Harold Wilson in 1968. The decision to devalue the British pound caused internal dissent, leading to the resignation of several ministers who could not support the government's economic policy.

3. (a) How is the House of the People constituted?

The House of the People, also known as the Lok Sabha, is one of the two houses of the Parliament of India. It is constituted through a system of direct elections based on the principles of representative democracy. The process of constituting the Lok Sabha involves several key steps:

1. Direct Elections:

- Members of the Lok Sabha are directly elected by the eligible voters of India. Each member represents a specific geographic constituency within the country.

2. Delimitation of Constituencies:

- The territory of India is divided into constituencies based on population considerations. The process of delimitation, conducted by a Delimitation Commission, ensures that constituencies are roughly equal in population size, allowing for fair representation.

3. Adult Suffrage:

- The Constitution of India grants the right to vote to all citizens above the age of 18. Adult suffrage ensures broad and inclusive participation in the electoral process.

4. Reservation of Seats:

- Certain seats in the Lok Sabha are reserved for Scheduled Castes (SCs) and Scheduled Tribes (STs) to ensure adequate representation for these historically marginalized communities. The number of reserved seats is determined based on the proportion of SCs and STs in the population.

5. First Past the Post System:

- The Lok Sabha members are elected using the First Past the Post (FPTP) electoral system. In each constituency, the candidate who receives the highest number of votes is declared the winner, regardless of whether they secure an absolute majority.

6. Duration of Lok Sabha:

- The term of the Lok Sabha is five years from the date of its first meeting after a general election. However, the President of India has the authority to dissolve the Lok Sabha before the completion of its term, leading to early elections.

7. Representation of Anglo-Indian Community (Previously):

- Until the 104th Constitutional Amendment in 2019, the President of India had the authority to nominate two members from the Anglo-Indian community if it was felt that they were not adequately represented in the Lok Sabha. However, this provision is no longer applicable since the 104th Amendment abolished the reservation of seats for the Anglo-Indian community in the Lok Sabha.

8. Political Parties and Independent Candidates:

- Political parties play a significant role in the electoral process. Candidates may contest elections as representatives of political parties, and the party that secures a majority of seats usually forms the government.

9. Oath of Office:

- Once elected, members of the Lok Sabha take the oath of office, affirming their allegiance to the Constitution of India and commitment to discharging their duties faithfully.

(b) Explain the qualifications that a person must possess in order to become the member of the House of the people.

To become a member of the House of the People (Lok Sabha) in India, an individual must meet certain qualifications as prescribed by the Constitution of India. These qualifications are outlined in Article 84 and Article 173 of the Constitution. Here are the key qualifications for a person to become a member of the Lok Sabha:

1. Citizenship:

- The candidate must be a citizen of India.

2. Age:

- The minimum age requirement for eligibility to become a member of the Lok Sabha is 25 years.

3. Electoral Roll:

- The candidate must be registered as an elector in any parliamentary constituency in the country.

4. Nomination by Political Party or as an Independent Candidate:

- A person can contest Lok Sabha elections either by being nominated by a recognized political party or as an independent candidate.

5. Nomination by Political Party:

- If a person is contesting as a candidate of a political party, they must fulfill the conditions set by the Election Commission of India for a valid nomination. This often includes the endorsement or selection by the respective political party.

6. Independent Candidate:

- An individual not nominated by a political party can contest as an independent candidate. In such cases, the candidate must submit a valid nomination paper with the support of a specified number of electors in the constituency.

7. Disqualifications:

- Certain disqualifications are outlined in the Constitution, and a person cannot become a member of the Lok Sabha if they fall under any of these disqualifications. Some common disqualifications include holding an office of profit under the government, being of unsound mind, being an undischarged insolvent, and holding dual citizenship.

8. Vacating Office of Profit:

- If a person holds any office of profit under the government, they must vacate such office before taking up the position of a member of the Lok Sabha.

9. Oath or Affirmation:

- Once elected, a member of the Lok Sabha is required to take and subscribe to an oath or affirmation before the President of India or a person appointed by the President.

It's important to note that the qualifications for membership of the Lok Sabha are designed to ensure that elected representatives are citizens with a minimum age, capable of representing the interests of the people. Additionally, the disqualifications aim to prevent conflicts of interest and maintain the integrity of the parliamentary system.

(c) Discuss the powers and functions of the House of the People.

The House of the People, also known as the Lok Sabha, is the lower house of the Parliament of India. It plays a pivotal role in the Indian parliamentary system, exercising various powers and functions that contribute to the legislative and representative functions of the government. Here are the key powers and functions of the Lok Sabha:

1. Legislative Powers:

- **Enacting Laws:** The Lok Sabha, as a legislative body, participates in the process of lawmaking. It has the power to introduce, debate, and pass bills. A bill, after being approved by the Lok Sabha, goes to the Rajya Sabha and, if both houses agree, is sent for the President's assent to become law.
- **Money Bills:** The Lok Sabha has exclusive authority over money bills, which deal with taxation and government expenditure. Money bills can only be introduced in the Lok Sabha, and the Rajya Sabha has limited powers to suggest changes, which the Lok Sabha may or may not accept.

2. Control over the Executive:

- **Formation of Government:** The Lok Sabha plays a crucial role in the formation of the government. The political party or coalition that commands a majority in the Lok Sabha forms the government. The leader of the majority party becomes the Prime Minister.
- **Vote of Confidence/No-Confidence:** The Lok Sabha has the power to pass a vote of confidence or a vote of no-confidence in the government. If the government loses a vote of no-confidence, it may lead to the resignation of the government, necessitating the formation of a new government or fresh elections.

3. Budgetary Powers:

- **Approval of Budget:** The Lok Sabha has the authority to approve or reject the annual budget presented by the government. This includes discussions on various aspects of the budget, such as revenue and expenditure proposals.

- **Control over Finances:** The Lok Sabha exercises control over public finances by approving government expenditures. No money can be withdrawn from the treasury without the Lok Sabha's approval.

4. Representative Function:

- **Representation of People:** Members of the Lok Sabha represent the people of India. The principle of universal adult suffrage ensures that members are elected by the citizens, making the Lok Sabha a representative body.
- **Constituency Grievances:** Members of the Lok Sabha act as a link between their constituencies and the central government. They address the grievances and concerns of their constituents and advocate for their interests in the parliament.

5. Questioning and Debates:

- **Question Hour:** Members can pose questions to ministers during the Question Hour, seeking information and clarifications on various issues.
- **Debates and Discussions:** The Lok Sabha provides a platform for debates and discussions on significant national and international issues. This facilitates the exchange of ideas and opinions among members.

6. Oversight and Accountability:

- **Committees:** The Lok Sabha has various committees, like the Public Accounts Committee (PAC) and the Estimates Committee, which scrutinize the government's functioning, expenditures, and policies.
- **Summoning Officials:** The Lok Sabha can summon government officials to testify before parliamentary committees, ensuring transparency and accountability.

7. Amendment of the Constitution:

- The Lok Sabha, along with the Rajya Sabha, has the power to amend the Constitution of India. Constitutional amendments require a special majority in both houses.

8. International Relations:

- The Lok Sabha is involved in matters of international importance, including ratifying treaties and agreements. It contributes to India's foreign policy by participating in discussions on international issues.

4. (a) Discuss the various provisions of the Constitution of India relating to appointment of Judges of the Supreme Court.

The appointment of Judges to the Supreme Court of India is a crucial process governed by specific provisions in the Constitution of India. The relevant provisions outline the qualifications, appointment procedure, and other aspects related to the judiciary. Here are the key provisions of the Constitution of India relating to the appointment of Judges of the Supreme Court:

1. Article 124 - Establishment and Constitution of Supreme Court:

- Article 124 provides for the establishment and constitution of the Supreme Court. It states that there shall be a Supreme Court of India consisting of a Chief Justice and, until Parliament by law prescribes a larger number, not more than seven other Judges.

2. Article 124(2) - Appointment of Judges:

- The appointment of Judges to the Supreme Court is addressed in Article 124(2). It stipulates that every Judge of the Supreme Court shall be appointed by the President of India. However, this appointment is to be made after consultation with such of the Judges of the Supreme Court and of the High Courts as the President may deem necessary.

3. Article 124(3) - Consultation with Judges:

- Article 124(3) specifies that in the case of the appointment of the Chief Justice of India (CJI), the President shall consult with such Judges of the Supreme Court and of the High Courts as deemed necessary. This consultation process is essential for selecting the most suitable candidate for the role of the Chief Justice.

4. Article 124(4) - Appointments by the President:

- Article 124(4) grants the President the power to appoint a Judge of the Supreme Court after consultation with the Chief Justice of India. In the case of appointing other Judges, the President is required to consult with the CJI and other Judges as deemed necessary.

5. Article 124(5) - Appointment of Acting Chief Justice:

- Article 124(5) empowers the President to appoint an acting Chief Justice of India when the office of the Chief Justice is vacant or when the CJI is unable to perform the duties of the office.

6. Article 124(6) - Appointment of Additional Judges:

- Article 124(6) allows the President to appoint a Judge of a High Court as an ad-hoc Judge of the Supreme Court. This provision is relevant in situations where there may be a temporary shortage of Judges in the Supreme Court.

7. Article 127 - Appointment of ad-hoc Judges:

- Article 127 provides for the appointment of ad-hoc Judges by the President when there is a lack of quorum in the Supreme Court to hear and decide on a case of public importance. These ad-hoc Judges are appointed from among the Judges of the High Courts.

8. Article 128 - Attendance of retired Judges at sittings of the Supreme Court:

- Article 128 allows the Chief Justice of India to request any retired Judge to sit and act as a Judge of the Supreme Court. This provision helps in utilizing the experience and expertise of retired Judges when necessary.

9. Article 217 - Appointment of Judges in High Courts:

- While not directly related to the Supreme Court, Article 217 outlines the process for the appointment of Judges in High Courts. It involves consultation between the Governor of the state, the Chief Justice of the High Court, and the Chief Justice of India.

10. Article 124A - NJAC (National Judicial Appointments Commission): - An important amendment was made to the Constitution by inserting Article 124A to establish the National Judicial Appointments Commission (NJAC) for the appointment of Judges to the Supreme Court and High Courts. However, this provision was struck down by the Supreme Court in the case of Supreme Court Advocates-on-Record Association and Anr. v. Union of India (2015), and the collegium system was reaffirmed.

(b) Write a note on the Advisory jurisdiction of the Supreme Court.

The Advisory Jurisdiction of the Supreme Court refers to the authority of the Supreme Court of India to provide advice on questions of law and constitutional interpretation referred to it by the President of India. This jurisdiction is outlined in Article 143 of the Constitution of India. While the primary function of the Supreme Court is adjudicating disputes, the advisory jurisdiction allows it to offer opinions on important legal matters, even if they are not arising from an ongoing case or controversy.

Here are the key features and considerations related to the Advisory Jurisdiction of the Supreme Court:

1. Article 143 - Advisory Jurisdiction:

- Article 143 empowers the President of India to seek the advice of the Supreme Court on questions of law or fact that have arisen or are likely to arise, and which are of public importance.

2. Non-Binding Nature of Advice:

- The advice given by the Supreme Court in its advisory jurisdiction is non-binding, meaning the President is not obligated to act in accordance with the opinion. However, the President may choose to follow the advice, and in practice, such opinions are often accorded great weight.

3. Scope of Advisory Jurisdiction:

- The advisory jurisdiction is not limited to questions of constitutional law; it extends to any question of law or fact. However, the Court typically refrains from providing advice on purely hypothetical or speculative questions.

4. Reference by the President:

- The President may make a reference to the Supreme Court either on a matter of public importance or when it involves a substantial question of law. The reference is initiated by a Presidential Order, and the Court is required to examine the matter and provide its opinion.

5. Limitations on Advisory Jurisdiction:

- The Supreme Court will not provide advice on questions that are purely political, involve the determination of facts, or are hypothetical or speculative in nature. The Court is cautious not to encroach upon the domain of the executive or legislative branches.

6. Not a Substitute for Dispute Resolution:

- The advisory jurisdiction is distinct from the Court's primary function of resolving disputes. It is not a substitute for the adjudication of actual cases or controversies brought before the Court through its original or appellate jurisdiction.

7. Significance in Constitutional Interpretation:

- The advisory jurisdiction plays a crucial role in constitutional interpretation and the development of constitutional law. It allows the Supreme Court to offer guidance on complex legal issues that may have far-reaching implications for the governance and constitutional structure of the country.

8. Landmark Cases:

- Notable cases involving the advisory jurisdiction include the Kesavananda Bharati case (1973), where the Court provided an opinion on the scope of the amending power of the Parliament and the basic structure of the Constitution. Another significant case is the Special Reference No. 1 of 1998, where the Court opined on issues related to the dissolution of state assemblies.

(c) Is the Supreme Court bound by its own decision?

The Supreme Court of India, like many other apex courts in common law jurisdictions, follows the doctrine of judicial precedent, commonly known as "stare decisis." This doctrine implies that the Supreme Court is generally bound by its own decisions, and decisions made by larger benches take precedence over those made by smaller benches. However, there are certain circumstances and mechanisms within the legal system that allow the Supreme Court to reconsider and depart from its previous decisions.

Here are the key aspects related to whether the Supreme Court is bound by its own decisions:

1. Doctrine of Stare Decisis:

- Under the doctrine of stare decisis, the Supreme Court considers its previous decisions as binding precedents. Lower courts are also bound by decisions of higher courts.

2. Binding Effect of Larger Benches:

- A decision made by a larger bench of the Supreme Court is binding on a smaller bench. For example, a judgment by a five-judge bench is binding on a three-judge bench.

3. Principle of Judicial Discipline:

- The principle of judicial discipline encourages judges to follow precedents and decisions made by the Supreme Court. This consistency in the application of law enhances legal predictability.

4. Exceptions to Stare Decisis:

- The Supreme Court, in certain situations, can depart from its previous decisions. This may occur when it is convinced that the earlier decision was erroneous or requires reconsideration. However, such departures are relatively rare and are generally guided by the need for substantial justice or significant changes in societal values.

5. Overruling and Review:

- The Supreme Court has the authority to overrule its previous decisions explicitly if it believes that the earlier decision was incorrect. Additionally, the Court has the power to review its own judgments to correct errors or address new facts or circumstances.

6. Prospective Overruling:

- In some cases, the Supreme Court may engage in prospective overruling, where it declares that its decision will apply only to future cases. This approach allows the Court to mitigate the adverse effects of overturning settled law.

7. Judicial Precedent as a Guiding Factor:

- Even when not strictly bound, the Supreme Court often considers its previous decisions as persuasive and relies on them as guiding principles in similar cases. This ensures consistency and stability in the legal system.

8. Rule of Law and Legal Certainty:

- While the Supreme Court has the authority to reconsider its decisions, it also values the principles of rule of law and legal certainty. Frequent departures from precedent can undermine the stability and predictability of the legal system.

5. **(a) Discuss the purposes for which the power to issue Writs as provided in Article 226 of the Constitution may be exercised by High Courts.**

Article 226 of the Constitution of India empowers the High Courts to issue writs, orders, or directions for the enforcement of fundamental rights and for any other purpose. The scope and purposes for which the power to issue writs under Article 226 may be exercised by High Courts are diverse and extensive. The writs that can be issued include habeas corpus, mandamus, prohibition, quo warranto, and certiorari. Here are the main purposes for which the power to issue writs under Article 226 may be exercised:

1. Enforcement of Fundamental Rights:

- One of the primary purposes of Article 226 is to enable High Courts to enforce fundamental rights guaranteed by the Constitution. Writs can be issued to protect an individual's fundamental rights, such as the right to life, liberty, equality, and freedom of speech.

2. Protection against Illegal Detention (Habeas Corpus):

- The High Courts can issue a writ of habeas corpus to safeguard an individual's personal liberty. This writ is used to inquire into the legality of a person's detention and can lead to the release of a person unlawfully detained.

3. Mandamus (Command):

- The High Courts may issue a writ of mandamus to compel a public authority or government official to perform a duty that they are legally obligated to perform. Mandamus is used to ensure that public officials act within their legal authority.

4. Prohibition:

- A writ of prohibition may be issued by the High Court to prevent a lower court or tribunal from exceeding its jurisdiction or acting outside its authority. It is a preventive measure to stop illegal proceedings.

5. Certiorari (To be Certified):

- The High Court can issue a writ of certiorari to quash the orders or decisions of lower courts, tribunals, or administrative authorities if they are found to be without jurisdiction, in excess of jurisdiction, or in violation of the principles of natural justice.

6. Quo Warranto (By What Authority):

- The writ of quo warranto is used to inquire into the legality of a person holding a public office and to challenge their authority. If a person is found to hold an office without proper authority, the writ can be issued to oust them from that office.

7. Protection of Legal Rights:

- The High Courts may use their writ jurisdiction to protect legal rights other than fundamental rights. This includes rights conferred by statutes, contracts, or other legal provisions.

8. Redressal of Public Grievances:

- High Courts may use the writ jurisdiction to address public grievances and ensure that public authorities and officials act in accordance with the law, especially when the matter involves public interest.

9. Judicial Review:

- Article 226 provides a tool for judicial review, allowing High Courts to review administrative actions and decisions to ensure they adhere to the principles of fairness, reasonableness, and legality.

10. Supervision of Administrative Actions: - The High Courts can exercise their writ jurisdiction to supervise the actions of administrative authorities, ensuring that they act within the scope of their powers and in accordance with the law.

(b) Differentiate between Articles 32 and 226 of the Constitution of India.

Articles 32 and 226 of the Constitution of India both pertain to the power of the judiciary to issue writs for the enforcement of fundamental rights and for other legal purposes. However, there are significant differences between these two articles in terms of their scope, applicability, and the entities they empower. Here's a differentiation between Articles 32 and 226:

1. Applicability:

- **Article 32:** This article specifically applies to the Supreme Court of India. It empowers individuals to directly approach the Supreme Court for the enforcement of their fundamental rights.
- **Article 226:** This article applies to all High Courts in India. It grants the High Courts the power to issue writs for the enforcement of fundamental rights and for other purposes.

2. Jurisdiction:

- **Article 32:** Provides the Supreme Court with original jurisdiction. Individuals can directly approach the Supreme Court if there is a violation of their fundamental rights.
- **Article 226:** Grants High Courts both original and appellate jurisdiction. While individuals can approach the High Court directly for the enforcement of their fundamental rights, the High Court can also exercise its jurisdiction in appellate matters.

3. Exclusive Power of Supreme Court:

- **Article 32:** Provides an exclusive power to the Supreme Court for the enforcement of fundamental rights. The right to move the Supreme Court directly for the violation of fundamental rights is considered a fundamental right itself (Constitutional Remedies).
- **Article 226:** While High Courts can issue writs for the enforcement of fundamental rights, it is not an exclusive power. The High Courts share this power with subordinate courts.

4. Fundamental Rights Only:

- **Article 32:** Primarily focused on the enforcement of fundamental rights guaranteed by Part III of the Constitution.
- **Article 226:** Allows the High Courts to issue writs for the enforcement of fundamental rights as well as for any other legal right or for other purposes beyond the scope of fundamental rights.

5. Limitation on High Courts:

- **Article 32:** Imposes no limitations on the Supreme Court's power to issue writs for the enforcement of fundamental rights. Individuals can directly approach the Supreme Court for the protection of their fundamental rights.
- **Article 226:** The High Courts, while having wide powers, are subject to the discretionary power of the court and may refuse to entertain a petition if alternative remedies are available or if the petitioner has not approached the court with clean hands.

6. Powers of the Supreme Court and High Courts:

- **Article 32:** The Supreme Court can issue writs like habeas corpus, mandamus, prohibition, quo warranto, and certiorari for the enforcement of fundamental rights.
- **Article 226:** High Courts have the same power to issue these writs not only for the enforcement of fundamental rights but also for other legal purposes and to protect legal rights beyond fundamental rights.

7. Constitutional Remedy:

- **Article 32:** The right to move the Supreme Court directly for the enforcement of fundamental rights is considered a constitutional remedy.
- **Article 226:** While it provides remedies for the enforcement of fundamental rights, it also serves as a remedy for other legal rights.

6. Discuss the various stages that a bill undergoes before it becomes an Act.

The legislative process in India involves several stages that a bill must go through before it becomes an Act of Parliament. This process is designed to ensure thorough scrutiny, debate, and consideration of proposed laws. Here are the various stages that a bill undergoes before it becomes an Act:

1. First Reading:

- **Introduction:** The bill is introduced in either the Lok Sabha (House of the People) or the Rajya Sabha (Council of States). This stage involves the presentation of the bill and its first reading.

2. Second Reading:

- **General Debate:** The bill undergoes a general debate, during which members discuss its principles and general provisions. This stage includes the consideration of the bill's objectives and scope.

3. Committee Stage:

- **Scrutiny by Parliamentary Committees:** The bill is sent to a parliamentary committee, such as a standing committee or a select committee, for detailed examination. The committee considers the bill clause by clause and may make amendments.

4. Report Stage:

- **Consideration of Committee Report:** The committee submits its report to the house, including recommendations and amendments. Members of the house consider the committee's report, and further amendments may be proposed and discussed.

5. Third Reading:

- **Final Consideration:** The final version of the bill, incorporating any approved amendments, is presented for the third reading. Members debate the bill in its entirety, and a vote is taken. Approval at this stage indicates the final acceptance of the bill's content.

6. Transmission to the Other House:

- **Bicameral System:** If the bill is introduced in the Lok Sabha, it is transmitted to the Rajya Sabha (and vice versa). The other house goes through similar stages – first reading, second reading, committee stage, report stage, and third reading.

7. Consideration in the Other House:

- **Review and Debate:** The other house reviews the bill and may make further amendments. The bill goes through all the stages again, including committee scrutiny and consideration of the report.

8. Consideration of Amendments:

- **Resolution of Differences:** If there are differences between the two houses regarding the bill, a joint sitting may be called to resolve the disagreements. However, joint sittings are rare, and most bills are resolved through negotiations between the houses.

9. Presidential Assent:

- **Approval by the President:** Once both houses agree on the final version of the bill, it is sent to the President for assent. The President can either give assent, withhold assent (with or without suggestions for reconsideration), or reserve the bill for the consideration of the President.

10. Publication and Commencement: - **Gazette Notification:** Upon receiving the President's assent, the bill becomes law and is published in the official gazette. This marks the commencement of the Act. The Act comes into force on the date specified in the notification or as determined by the government.

11. Commencement of the Act: - **Effective Date:** The Act comes into effect on the date specified in the notification or as announced by the government. It is at this point that the provisions of the Act become applicable.

It's important to note that there are different types of bills, such as money bills and constitutional amendment bills, each with its specific procedures. The legislative process ensures a comprehensive examination of proposed laws and allows for democratic deliberation and scrutiny by elected representatives.

6. **(a) State the various procedures by which the Constitution of India can be amended.**

The Constitution of India can be amended through the following procedures as outlined in Article 368:

1. Amendment by Simple Majority:

- For certain provisions of the Constitution, amendments can be made by a simple majority of the members present and voting in each house of Parliament. This includes provisions related to the creation or abolition of Legislative Councils in states, representation of states in Parliament, and the powers of the President under Article 61 concerning impeachment.

2. Amendment by Special Majority:

- Most amendments to the Constitution require a special majority, which is a majority of the total membership of each house of Parliament and a majority of not less than two-thirds of the members present and voting. This includes amendments related to fundamental rights, the directive principles of state policy, the federal structure of the country, representation of states in Parliament, and the powers of the President.

3. Amendment by Special Majority and Ratification by States:

- Certain amendments require a special majority in Parliament as well as ratification by a majority of the states. The President must then give his assent. This process is applicable to amendments that affect the federal structure of the country, representation of states in

Parliament, and the powers of the President. The states ratify the amendment by a simple majority.

4. Amendment by Special Majority and Ratification by States (with a two-thirds majority):

- For certain amendments related to representation of states in Parliament and the alteration of boundaries or names of states, a special majority in Parliament and ratification by at least half of the states are required. Additionally, in the case of amendments related to the reorganization of states, a two-thirds majority of the states is necessary.

5. Amendment by Special Majority and Ratification by States (with a simple majority):

- Amendments that affect the distribution of powers between the Union and the states require a special majority in Parliament and ratification by a simple majority of the states.

6. Procedure for Amendment of the First Schedule and Fourth Schedule:

- Amendments related to the First Schedule (emoluments, allowances, privileges, etc., of the President, Governors, etc.) and the Fourth Schedule (allocation of seats in the Rajya Sabha to states and Union territories) require a simple majority in Parliament.

7. Procedure for Amendment of the Second Schedule:

- Amendments related to the Second Schedule (emoluments, allowances, privileges, etc., of the Speaker and Deputy Speaker of the Lok Sabha and the Chairman and Deputy Chairman of the Rajya Sabha) require a simple majority in Parliament.

8. Procedure for Amendment of the Third Schedule:

- Amendments related to the Third Schedule (forms of oaths and affirmations for various constitutional positions) require a simple majority in Parliament.

(b) Can the Fundamental Rights be amended?

The Fundamental Rights enshrined in Part III of the Constitution of India can be amended. However, there are certain limitations and safeguards in place to ensure that the core and essence of these rights are not altered in a manner that would destroy the basic structure of the Constitution.

The power to amend the Constitution, including provisions related to Fundamental Rights, is provided under Article 368. Here are the key points regarding the amendment of Fundamental Rights:

1. Power to Amend:

- The Parliament has the power to amend any part of the Constitution, including Fundamental Rights, through the constitutional amendment process as specified in Article 368.

2. Amendment by Special Majority:

- Most amendments, including those related to Fundamental Rights, require a special majority of the total membership of each house of Parliament and a majority of not less than two-thirds of the members present and voting.

3. Judicial Review and the Basic Structure Doctrine:

- While Parliament has the power to amend the Constitution, including Fundamental Rights, the Supreme Court of India has established the "Basic Structure Doctrine." According to this doctrine, certain features of the Constitution, including the basic structure of Fundamental Rights, are beyond the amending power of Parliament. Any amendment that alters or destroys the basic structure is considered unconstitutional.

4. Kesavananda Bharati Case (1973):

- The Basic Structure Doctrine was articulated in the landmark case of Kesavananda Bharati v. State of Kerala (1973). The Supreme Court held that while Parliament has the power to amend the Constitution, this power is not absolute, and amendments that violate the basic structure, including Fundamental Rights, can be struck down by the judiciary.

5. Basic Structure of Fundamental Rights:

- The concept of basic structure extends to the core principles and values underlying Fundamental Rights. The essence of these rights, such as equality, freedom, and justice, cannot be altered or destroyed through constitutional amendments.

6. Judicial Review of Amendments:

- The judiciary has the authority to review constitutional amendments, including those related to Fundamental Rights, to ensure that they do not violate the basic structure of the Constitution.

7. Limitations on Amendments:

- While Parliament has broad powers to amend the Constitution, there are limitations on the extent to which Fundamental Rights can be amended. The principles of justice, liberty, equality, and dignity, which are foundational to Fundamental Rights, are considered part of the basic structure.

7. (a) Discuss the Constitutional provisions for proclamation of emergency as stated in Article 352 of the Constitution of India.

Article 352 of the Constitution of India deals with the proclamation of a state of emergency in the country. This provision empowers the President to declare a state of emergency on the grounds of threat to the security of India, either due to war, external aggression, or armed rebellion. The constitutional provisions for the proclamation of emergency under Article 352 are as follows:

1. Grounds for Proclamation (Article 352(1)):

- Article 352(1) specifies the grounds on which the President can proclaim a state of emergency. These grounds include:
    - War: In case of war, or external aggression, or armed rebellion, the President may proclaim a state of emergency.

2. Satisfaction of the President (Article 352(1)):

- The President has to be satisfied that a grave emergency exists whereby the security of India or any part of its territory is threatened by war or external aggression or armed rebellion. The decision to proclaim an emergency is based on the President's subjective satisfaction.

3. Advice of the Cabinet (Article 352(2)):

- Before issuing a proclamation, the President is required to obtain the written recommendation of the Cabinet. This ensures that the decision to declare an emergency is made after due consideration and consultation with the Council of Ministers.

4. Judicial Review (Article 352(3)):

- Article 352(3) provides that the proclamation of emergency and its continuation can be challenged in a court of law. However, the satisfaction of the President in this regard is final and cannot be questioned on the ground that it was not based on valid material or was mala fide.

5. Effect on Fundamental Rights (Article 358):

- When a proclamation of emergency is in operation, the President is empowered by Article 358 to suspend the enforcement of certain Fundamental Rights under Article 19. The suspension of rights is limited to those guaranteed under Article 19, and other Fundamental Rights remain unaffected.

6. Duration of Emergency (Article 352(4)):

- Article 352(4) states that a proclamation of emergency must be approved by both Houses of Parliament within one month from the date of its issue. If not approved, the emergency automatically comes to an end. If approved, the emergency continues for a period of six months. However, it can be extended indefinitely through successive resolutions.

7. Revocation of Emergency (Article 352(5)):

- The President has the authority to revoke a proclamation of emergency at any time. The revocation can be done by a subsequent proclamation.

8. Parliamentary Approval (Article 353):

- Article 353 gives Parliament the authority to legislate on matters included in the State List while a proclamation of emergency is in operation. The President may issue directions for this purpose, and such laws continue to operate even after the emergency is revoked.

9. State Emergency (Article 356):

- Article 352 deals with emergencies that threaten the security of India as a whole. In contrast, Article 356 provides for the proclamation of President's Rule in a state if there is failure of the constitutional machinery in that state.

(b) What are the effects of proclamation of emergency?

The proclamation of a state of emergency in India, as provided under Article 352 of the Constitution, has significant effects on various aspects of governance and individual rights. The effects of a proclamation of emergency are outlined below:

1. Suspension of Fundamental Rights (Article 358):

- One of the most significant effects is the suspension of certain Fundamental Rights guaranteed under Article 19. Article 358 empowers the President to suspend the right to move the courts for the enforcement of Fundamental Rights during the operation of the emergency. This suspension is limited to the rights under Article 19 and does not affect other Fundamental Rights.

2. State Powers Overridden (Article 353):

- The President is authorized to issue directions for the exercise of the executive power of the Union to give effect to the provisions of Article 355 (duty of the Union to protect states against external aggression and internal disturbance) and to the exercise of the executive power of the Union to ensure compliance with laws made by Parliament under Article 356 (dealing with President's Rule in states).

3. Parliament's Power to Make Laws (Article 353):

- Parliament gains the authority to make laws on the State List (List II of the Seventh Schedule) during the operation of the emergency. The President can issue directions for the adaptation of laws and principles of laws to bring them in conformity with the provisions of the Constitution.

4. Central Control over States (Article 353):

- The President has the power to issue directions to any state regarding the manner in which the executive power of the state is to be exercised during the period of the emergency.

5. Parliamentary Approval (Article 352(4)):

- The proclamation of emergency must be approved by both Houses of Parliament within one month from the date of its issue. If not approved, the emergency automatically comes to an end.

6. Duration and Extension (Article 352(4)):

- The initial duration of the emergency is six months, and it can be extended indefinitely through successive resolutions in Parliament. However, each extension requires fresh parliamentary approval.

7. Judicial Review (Article 352(3)):

- The proclamation of emergency and its continuance are subject to judicial review. While the satisfaction of the President cannot be questioned on the ground of mala fide or absence of material, the courts can examine the legality and procedural aspects of the emergency proclamation.

8. Revocation of Emergency (Article 352(5)):

- The President has the authority to revoke the proclamation of emergency at any time by issuing a subsequent proclamation. The revocation may be prompted by a resolution of disapproval by either house of Parliament.

9. Impact on Federal Structure (Article 352 and 353):

- The proclamation of emergency can impact the federal structure of the country. The President can issue directions to states during the emergency, and the central government gains increased authority over state governments.

10. Changes in Legislative Competence (Article 357): - Article 357 empowers the President to make laws during the emergency, including laws with respect to any matter in the State List. These laws can continue to operate even after the emergency is revoked.

9. Explain the various privileges and immunities that are enjoyed by the members of Parliament.

Members of Parliament (MPs) in India enjoy certain privileges and immunities that are essential for the effective functioning of the parliamentary system. These privileges and immunities are intended to ensure the independence of MPs, protect the sanctity of parliamentary proceedings, and enable them to discharge their constitutional duties without hindrance. Here are the various privileges and immunities enjoyed by members of Parliament:

1. Freedom of Speech and Debate (Article 105(1)):

- Article 105(1) of the Constitution provides MPs with the freedom of speech and debate in Parliament. This immunity ensures that MPs can express their opinions and viewpoints freely without fear of legal action outside the Parliament.

2. Immunity from Legal Proceedings (Article 105(2)):

- Article 105(2) grants immunity to MPs from any legal proceedings in respect of anything said or any vote given by them in Parliament or any committee thereof. This protection extends to their participation in parliamentary proceedings, speeches, and voting.

3. Freedom from Arrest (Article 105(2)):

- MPs enjoy freedom from arrest during their attendance in Parliament and while going to or returning from Parliament, except in cases of arrest under non-bailable offenses.

4. Exemption from Jury Service (Article 105(3)):

- MPs are exempt from serving on juries during the period they are members of Parliament.

5. No Liability for Libel or Slander (Article 105(2)):

- MPs are not liable for any libel or slander for any speech or vote made by them in Parliament or its committees. This immunity is essential to encourage open and honest debate without the fear of legal consequences.

6. Exemption from Witness Stand (Article 105(2)):

- MPs are exempted from appearing as witnesses in courts or tribunals in relation to the matters discussed or voted upon by them in Parliament or its committees.

7. Right to Refuse Evidence (Article 105(2)):

- MPs have the right to refuse to give evidence or produce documents before any authority, including a court, in relation to the proceedings of Parliament or any committee thereof.

8. Freedom from Arrest during Session (Article 105(4)):

- During the session of Parliament, MPs are immune from arrest in civil cases, subject to certain exceptions. This privilege ensures that MPs can discharge their parliamentary duties without the fear of arrest, which might impede their work.

9. Immunity from Civil Process (Article 105(5)):

- MPs are immune from civil process during the session of Parliament within the precincts of Parliament and 40 days before and after the session. This protection is granted to prevent interference with their duties.

10. Privilege of Attendance at Sessions and Committees: - MPs have the privilege of attending sessions of Parliament and its committees. This includes the right to participate in debates, discussions, and voting.

11. Freedom of Movement in Parliament: - MPs have the freedom of movement within the precincts of Parliament. This ensures that they can access various parliamentary facilities and engage in parliamentary activities without hindrance.

12. Facilities for Official Communication: - MPs are provided with facilities for official communication, including postage and telegraphs, to assist them in carrying out their parliamentary duties.

10. Write short notes on any two of the following:
(a) Special Leave to Appeal

"Special Leave to Appeal" (SLP) is a discretionary power exercised by the Supreme Court of India. It is a unique feature of the Indian judicial system that allows the Supreme Court to grant special permission to an aggrieved party to appeal against a decision of any court or tribunal, even if the case does not involve a substantial question of law.
Here are the key features and aspects related to Special Leave to Appeal:

1. Discretionary Power of the Supreme Court:
- SLP is not an appeal as of right. Instead, it is a discretionary power exercised by the Supreme Court. The Court has the discretion to grant or refuse permission to appeal.

2. Article 136 of the Constitution:
- The power of the Supreme Court to grant SLP is derived from Article 136 of the Constitution of India. Article 136 confers on the Supreme Court the special power to grant special leave to appeal from any judgment, decree, determination, sentence, or order in any cause or matter passed or made by any court or tribunal in the territory of India.

3. Jurisdiction:
- The Supreme Court can grant special leave to appeal against decisions of any court or tribunal, including High Courts, lower courts, and administrative tribunals.

4. Discretionary Criteria:
- The Supreme Court exercises its discretion based on the merits of each case. While there is no strict formula for granting SLP, the Court generally considers factors such as the importance of the legal issues involved, the public interest, and the need for uniformity in legal interpretation.

5. No Substantial Question of Law Requirement:
- Unlike regular appeals, SLP does not require the existence of a substantial question of law. The Supreme Court may grant special leave even if the case involves questions of fact or mixed questions of law and fact.

6. Wide Scope:
- SLP can be filed against any type of judicial order, including civil, criminal, constitutional, and administrative matters. It is a versatile remedy that covers a broad spectrum of legal issues.

7. Procedure for Filing:
- To seek special leave to appeal, a party must file a petition before the Supreme Court, stating the grounds for seeking leave. The petition is then considered by the Court, and if the Court finds merit, special leave is granted.

8. Limited Review of Decisions:
- The scope of review in an SLP is generally limited. The Supreme Court may not reevaluate the evidence or interfere with concurrent findings of fact unless there is a glaring error of law.

9. Finality of Decisions:
- Once the Supreme Court grants special leave to appeal and hears the case on merits, its decision is final and binding.

(b) Dissolution and prorogation of the House of the People

Dissolution and prorogation are two distinct processes related to the functioning of the House of the People (Lok Sabha) in the Indian parliamentary system. Let's discuss each of these concepts:

Dissolution of the House of the People:

1. Definition:

- Dissolution refers to the termination of the current Lok Sabha before the completion of its full term. It marks the end of the existing House, and new elections are held to constitute a new Lok Sabha.

2. Occurrence:

- Dissolution typically occurs when the government, led by the Prime Minister, recommends it to the President. The President, as the constitutional head, then issues a proclamation dissolving the Lok Sabha.

3. Triggering Factors:

- Dissolution can occur under various circumstances:
    - The government loses a vote of confidence.
    - The government voluntarily decides to seek a fresh mandate.
    - The Lok Sabha fails to form a government after a general election.

4. Effect:

- Once the Lok Sabha is dissolved, all Members of Parliament (MPs) cease to be members, and their seats become vacant. The country goes into a state of political transition, and elections are conducted to form a new Lok Sabha.

Prorogation of the House of the People:

1. Definition:

- Prorogation refers to the termination of a session of the Lok Sabha. It does not dissolve the House; instead, it marks the end of a particular sitting.

2. Authority:

- The President, on the advice of the Prime Minister, has the authority to prorogue the Lok Sabha. The decision is usually made after the completion of the business scheduled for a particular session.

3. Frequency:

- Prorogation happens more frequently than dissolution and is a routine part of the parliamentary calendar. Sessions of the Lok Sabha are typically prorogued after the completion of the agenda for that session.

4. Effect:

- Prorogation brings the current session to a close. However, the Lok Sabha continues to exist, and its members retain their status. A new session can be convened at a later date, and the House resumes its functioning.

5. Role of the President:

- The President, as the head of state, plays a formal role in prorogation. The decision is made based on the advice of the Prime Minister, and the President issues a notification declaring the prorogation of the Lok Sabha.

(c) Failure of Constitutional machinery in a state

The "failure of constitutional machinery" in a state is a situation where the constitutional framework and machinery in a particular state cease to function according to the provisions of the Constitution. This condition is addressed under Article 356 of the Indian Constitution, which provides for the imposition of President's Rule or the proclamation of a state of Emergency in the state.

Here is an explanation of the concept and the constitutional provisions related to the failure of constitutional machinery in a state:

1. Article 356 - Provisions for Failure of Constitutional Machinery:

- Article 356, also known as the President's Rule, deals with the failure of constitutional machinery in a state. It empowers the President of India to take certain steps in case there is a failure in the constitutional machinery in a state, leading to a breakdown of governance.

2. Grounds for the Proclamation:

- The President can proclaim a state of Emergency in a state on the grounds that the government in the state cannot be carried on in accordance with the provisions of the Constitution.

3. Governor's Report:

- Before the President takes any action under Article 356, the Governor of the state submits a report to the President, bringing to the attention of the President the fact that the government in the state cannot be carried on in accordance with the provisions of the Constitution.

4. Circumstances Leading to Proclamation:

- The President can issue a proclamation under Article 356 in various circumstances, including:
  - Breakdown of law and order.
  - Political instability leading to the inability to form a stable government.
  - Any other situation where the constitutional machinery in the state fails.

5. Effect of Proclamation:

- Once the President issues a proclamation under Article 356, the following consequences may follow:
  - The State Legislature can be dissolved or may be kept in suspended animation.
  - The powers of the State Legislature may be exercised by the Parliament.
  - The President can assume to himself, or direct the Governor or any other authority, to exercise the powers and functions of the government of the state.

6. Judicial Scrutiny:

- The imposition of President's Rule under Article 356 is subject to judicial review. The Supreme Court can examine the constitutional validity of the President's action and may affirm, modify, or revoke the proclamation.

7. Time Limit for Parliamentary Approval:

- The proclamation under Article 356 must be approved by both Houses of Parliament within two months from the date of its issue. If not approved, it ceases to be in operation.

8. Recommendations of Sarkaria Commission:

- The Sarkaria Commission, which was constituted to examine the relations between the states and the Centre, provided recommendations to guide the President in deciding whether to impose President's Rule.

9. Controversial Nature:

- The imposition of President's Rule is often a controversial and politically sensitive issue, and its misuse has been a subject of criticism and debate in the Indian political context.

(d) Impeachment of President of India.

The impeachment of the President of India is a rare and significant constitutional process outlined in Article 61 of the Indian Constitution. It provides a mechanism for the removal of the President from office on specific grounds of violation of the Constitution. The impeachment process involves both Houses of Parliament, and it is a solemn and elaborate procedure. Here are the key aspects of the impeachment of the President of India:

1. Grounds for Impeachment (Article 61):

- The President can be impeached on the grounds of "violation of the Constitution" as specified in Article 61.

2. Resolution for Impeachment:

- The process begins with the initiation of a resolution for the impeachment of the President in either House of Parliament. The resolution must be supported by:
    - Not less than one-fourth of the total membership of the House (signatories), and
    - By a majority of not less than two-thirds of the members present and voting.

3. Notice of the Resolution:

- At least 14 days' notice must be given for the consideration of the resolution. The notice must be signed by the members who support the resolution.

4. Investigation Committee:

- After the resolution is initiated, an investigation committee is formed. This committee consists of the Vice President and the Speaker of the Lok Sabha, along with a jurist nominated by the President of India. The committee investigates the charges against the President.

5. President's Right to Defend:

- The President has the right to appear and be represented at the investigation committee's proceedings.

6. Report of the Committee:

- The investigation committee presents its report to the Parliament. If the committee finds that the charges are not substantiated, the impeachment process comes to an end. However, if the committee finds the charges substantiated, the resolution for impeachment is taken up for consideration.

7. Consideration in Both Houses:

- The resolution for impeachment is considered separately in both Houses of Parliament. It must be passed by a majority of not less than two-thirds of the total membership of that House.

8. Joint Sitting if Required:

- If the resolution is passed by one House but not the other, or if there is a disagreement between the two Houses, a joint sitting of both Houses is convened to vote on the resolution.

9. President's Removal:

- If the resolution is adopted by a two-thirds majority in both Houses, and after the joint sitting if required, the President stands impeached. The President's office is deemed vacant from the date of the passing of the resolution.

10. No Criminal Proceedings: - The President is immune from any criminal proceedings during their term in office. However, after leaving office, the former President can be held liable for their actions in accordance with the law.

11. Solemn Process: - Impeachment is a solemn and rare process, emphasizing the importance of preserving the integrity and independence of the highest office in the land.

The End